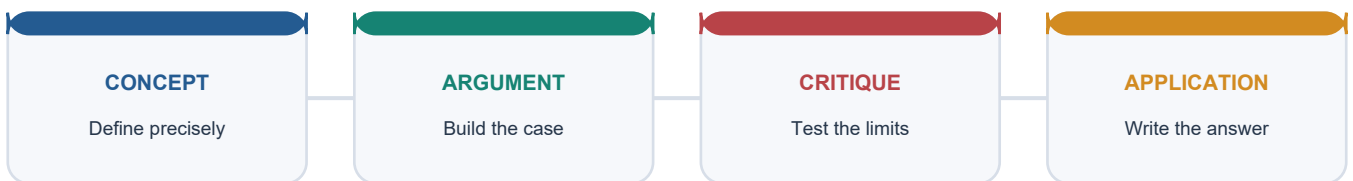


COMPLETE LEARNING SESSION

Political Obligation, Resistance and Law - Complete Topic Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Political Obligation, Resistance and Law - Complete Topic Package

Subject: Political Theory **Section:** Subject-wide Syllabus **Target stages:** UPSC Prelims and General Studies Mains only **Primary ownership:** GS-II conceptual foundations **Cross-application:** GS-I, GS-IV and Essay only where genuinely relevant **Classification firewall:** Political Theory is a GS/Prelims foundation, not a separate UPSC paper. **Source policy:** complete Basic owner first; Advanced enrichment only after practice.

DEEP-REVIEW LEARNING CONTRACT

- **Core scope:** political obligation, resistance, civil disobedience, law and punishment.
- **Source rule:** canonical Basic/Core, Advanced, assembled package, official GS mapping, routed Prelims/GS ledgers and OCR-searchable local books were reconciled before repair.
- **PYQ rule:** only directly verified Prelims/GS Mains questions may be owned; when none exists, original GS practice is labelled honestly.
- **Writing rule:** claim -> named evidence/example -> analysis -> qualification/link to demand.
- **Advanced rule:** OPTIONAL ADVANCED DEPTH means enrichment beyond a core GS answer and never a separate-paper classification.

BASIC LEARNING SESSION

SESSION 1 - Political Obligation: Problem, Definitions and Grounds

Subject: Political Theory | **Tier:** Must-Do (foundation) | **Exam relevance:** GS-II (Polity & Governance) conceptual foundation; GS-II conceptual foundation. **Core area:** Why obey political authority, when resistance is justified, how law relates to morality and liberty, and what can justify punishment. **Grounded in:** O. P. Gauba, *An Introduction to Political Theory*, Fifth Edition (2009), Ch.11-12, PDF pp.280-300; *Socio-Political Philosophy*, PDF pp.164-167 for punishment. **Source edition/cutoff:** Fifth Edition (2009); no post-2009 fact is assumed unless independently dated and tagged CURRENT:. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference/synthesis | **CURRENT:** = dated current anchor | **WRONG:** = trap/misattribution. *Companion:* Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md.

1. One-screen conceptual map

POLITICAL OBLIGATION

```
|
+--> FACT: unlimited views
|     force / divine right / strong idealist or absolutist consent
|
+--> FACT: limited views
|     Locke / Green / cautious constitutional resistance / Gandhi
|
+--> FACT: anti-obligation views
|     Marxist (against class-state) / anarchist (against coercive authority)
```

LAW

```
|
+--> FACT: prescriptive law in politics
+--> FACT: natural / analytical / historical / sociological jurisprudence
+--> FACT: law <-> morality
+--> FACT: law <-> liberty
+--> FACT: rule of law
```

PUNISHMENT

```
+--> retributive: proportionate desert
+--> deterrent: prevent future crime
+--> reformative: rehabilitate offender
```

- FACT: Gauba defines the problem of political obligation as the question of how far, when and why an individual is obliged to obey law and political authority (PDF p.280).
- ANALYSIS: The core exam move is to separate **obedience**, **moral legitimacy**, **resistance**, and **legal validity**, instead of merging them into one idea.

2. Why this topic matters

- FACT: This topic sits exactly at the junction where theory tests the limits of state authority and the citizen's right to disobey or resist (PDF pp.280-289).
- FACT: The law chapter then supplies the conceptual grammar needed to distinguish valid law, just law, custom, adjudication, equity and rule of law (PDF pp.289-300).
- ANALYSIS: UPSC rewards answers that show civil disobedience is not casual law-breaking and that rule of law is not exhausted by mere procedure.
- FACT: The chapter also warns against romanticizing resistance: Gauba repeatedly urges caution, public debate and exhaustion of constitutional methods before extreme action (PDF pp.287-288).

2A. Origin and timeline of political obligation, resistance and law

FACT: The dated spine below is taken directly from the routed pages (gauba PDF pp.280-300; spp PDF pp.164-167) rather than from earlier notes. ANALYSIS: Chronology matters here because a Political Theory answer that names a position without the work or the period behind it reads as assertion; naming the anchor converts the same sentence into evidence.

Dated rail drawn from the routed source pages (each row reproduces a name, life-date, work or event exactly as the local source records it):

Anchor	Name, work or event	What the source attaches to it
1552-1634	FACT: Edward Coke	In England views of Edward Coke (1552-1634) and William Blackstone (1723-80) are treated as authoritative as law; in America works of Joseph Story (1779-1845) and James Kent (1763-1847) enjoy similar status
1588-1653	FACT: Robert Filmer	Its chief exponent was Robert Filmer (1588-1653)
1588-1679	FACT: Thomas Hobbes	Thomas Hobbes (1588-1679), John Locke (1632-1704), and Jean Jaques Rousseau (1712-78)
1632-1704	FACT: John Locke	Thomas Hobbes (1588-1679), John Locke (1632-1704), and Jean Jaques Rousseau (1712-78)

Anchor	Name, work or event	What the source attaches to it
1711-76	FACT: David Hume	David Hume (1711-76) argued that the advantages of obedience to any type of political authority outweigh the disadvantages of having no government at all
1712-78	FACT: Jean Jaques Rousseau	Thomas Hobbes (1588-1679), John Locke (1632-1704), and Jean Jaques Rousseau (1712-78)
1723-80	FACT: William Blackstone	In England views of Edward Coke (1552-1634) and William Blackstone (1723-80) are treated as authoritative as law; in America works of Joseph Story (1779-1845) and James Kent (1763-1847) enjoy similar status
1724-1804	FACT: Immanuel Kant	In the eighteenth century it was developed, particularly by Immanuel Kant (1724-1804), as an objective standard to which all rational nature should conform
1729-97	FACT: Edmund Burke	Edmund Burke (1729-97) similarly argued that politics was a matter of 'prudence and practicability'
1763-1847	FACT: James Kent	In England views of Edward Coke (1552-1634) and William Blackstone (1723-80) are treated as authoritative as law; in America works of Joseph Story (1779-1845) and James Kent (1763-1847) enjoy similar status
1779-1845	FACT: Joseph Story	In England views of Edward Coke (1552-1634) and William Blackstone (1723-80) are treated as authoritative as law; in America works of Joseph Story (1779-1845) and James Kent (1763-1847) enjoy similar status
1790-1859	FACT: John Austin	John Austin (1790-1859) is regarded the chief exponent of this school of thought, who tried to discover the key doctrines and ideas underlying a formal legal system
1817-62	FACT: Henry David Thoreau	The term 'civil disobedience' was originally coined by an American writer - Henry David Thoreau (1817-62) who published an essay in 1848 to explain why he had refused to pay taxes to the state for several years for which he had to undergo imprisonment
1822-88	FACT: Henry Maine	Savigny (1779-1861) and Henry Maine (1822-88)
1838-1909	FACT: Ludwig Gumplowicz	SOCIOLOGICAL JURISPRUDENCE The exponents of this school include Ludwig Gumplowicz (1838-1909), Leon Duguit (1859-1928), Hugo Krabbe (1857-1936), Roscoe Pound (1870-1964) and Harold J
1842-1921	FACT: Peter Kropotkin	Proudhon (1809-65) and Peter Kropotkin (1842-1921) argued that all governmental authority is illegitimate because the state is indeed a coercive institution, which is suited only to a corrupt and unjust society
1857-1936	FACT: Hugo Krabbe	SOCIOLOGICAL JURISPRUDENCE The exponents of this school include Ludwig Gumplowicz (1838-1909), Leon Duguit (1859-1928), Hugo Krabbe (1857-1936), Roscoe Pound (1870-1964) and Harold J
1859-1928	FACT: Leon Duguit	SOCIOLOGICAL JURISPRUDENCE The exponents of this school include Ludwig Gumplowicz (1838-1909), Leon Duguit (1859-1928), Hugo Krabbe (1857-1936), Roscoe Pound (1870-1964) and Harold J

Anchor	Name, work or event	What the source attaches to it
1861	FACT: Early History of Society and Its Relation to Moral Ideals	Its Connection with the Early History of Society and Its Relation to Moral Ideals (1861), rejected Savigny's approach to law as a heritage of a particular people
1869-1948	FACT: Mahatma Gandhi	Mahatma Gandhi (1869-1948), India's father of the nation, recognized severe limits of political obligation, as his principle of 'civil disobedience' indicates
1870-1964	FACT: Roscoe Pound	SOCIOLOGICAL JURISPRUDENCE The exponents of this school include Ludwig Gumplowicz (1838-1909), Leon Duguit (1859-1928), Hugo Krabbe (1857-1936), Roscoe Pound (1870-1964) and Harold J
1882	FACT: In his Lectures on the Principles of Political Obligation	In his Lectures on the Principles of Political Obligation (1882) Green argued that the state itself is obliged to promote the common good as conceived by its citizens, and that individual is obliged to obey only those laws which will promote the common good

ANALYSIS: Dating discipline: use only the anchors in this rail. Do not attach a year to a name the source leaves undated, and do not convert a 2009-edition chronology into a claim about later scholarship.

Visual-first recall

POLITICAL OBLIGATION: PROBLEM, DEFINITIONS AND GROUNDS

- |
- [1] force / divine right / strong idealist or absolutist consent
- ↓
- [2] Locke / Green / cautious constitutional resistance / Gandhi
- ↓
- [3] Gauba defines the problem of political obligation as the question of how far, when...
- ↓
- [4] The core exam move is to separate obedience, moral legitimacy, resistance, and legal...

Answer-grabbing line: force / divine right / strong idealist or absolutist consent

Must-write keywords: Subject;; Tier;; Exam relevance;; Core area;; Grounded in;; Source edition/cutoff;; obedience.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: force / divine right / strong idealist or absolutist consent **Named evidence/example:** Locke / Green / cautious constitutional resistance / Gandhi **Analysis:** Read together, these propositions show how political obligation: problem, definitions and grounds shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** This topic sits exactly at the junction where theory tests the limits of state authority and the citizen's right to disobey or resist (PDF pp.280-289).

SESSION 2 - Law: Nature, Schools and the Rule-of-Law Sequence

3. Essential definitions

- FACT: **Political obligation:** the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- FACT: **Force-based obligation:** obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
- FACT: **Consent:** obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
- FACT: **Common good basis:** obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
- FACT: **Civil disobedience:** deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).

- FACT: **Conscientious objection**: refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- FACT: **Prescriptive law**: man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
- FACT: **Natural law school**: law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).
- FACT: **Analytical jurisprudence**: law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
- FACT: **Historical jurisprudence**: law must be traced to social history, custom and legal evolution (PDF pp.292-293).
- FACT: **Sociological jurisprudence**: law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
- FACT: **Rule of law**: governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).
- FACT: **Retributive punishment**: backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (*Socio-Political Philosophy*, PDF p.164).
 - FACT: **Deterrent punishment**: forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165).
 - FACT: **Reformative punishment**: forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166).
 - ANALYSIS: **Proportionality**: severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose.

4. Core argument / chapter spine

- FACT: Gauba begins with rival grounds of political obligation: force, divine right, conservative prudence, consent, idealism, Marxism, anarchism and Gandhian civil disobedience (PDF pp.280-287).
- FACT: He rejects purely force-based and divine-right views because they do not secure morally reasoned obedience and leave no room for judging unjust commands (PDF pp.281-282).
- FACT: Among consent theories, Hobbes and Rousseau tend toward strong obligation, whereas Locke gives the clearest limited version by making government a trust answerable to rights and consent (PDF pp.283-284).
- FACT: Green's idealist revision places obligation toward the organized power of society and the common good rather than toward any government demanding blind obedience (PDF pp.284-286).
- FACT: Marxists and anarchists deny political obligation to the existing coercive class-state, though for different reasons and with different visions of social transformation (PDF p.286).
- FACT: Gandhi supplies a disciplined doctrine of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, and without sectional selfishness (PDF p.287).
- FACT: The law chapter then shifts from obedience to legal concept-formation: law in political science is prescriptive law, interpreted by natural, analytical, historical and sociological schools (PDF pp.289-294).
- FACT: Gauba finally examines sources of law, law's relation to morality and liberty, and the rule of law as an anti-arbitrariness principle (PDF pp.294-300).

Visual-first recall

LAW: NATURE, SCHOOLS AND THE RULE-OF-LAW SEQUENCE

- |
- [1] Political obligation: the duty to obey political authority and the laws necessary to...
- v
- [2] Force-based obligation: obedience grounded mainly in the superior coercive power of...
- v
- [3] Consent: obedience grounded in explicit or implicit agreement to political authority,...
- v
- [4] Common good basis: obedience owed only insofar as law promotes the shared good of the...

Answer-grabbing line: Political obligation: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).

Must-write keywords: Political obligation;; Force-based obligation;; Consent;; Common good basis;; Civil disobedience;; Conscientious objection;; Prescriptive law:.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Political obligation: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280). **Named evidence/example:** Force-based obligation: obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281). **Analysis:** Read together, these propositions show how law: nature, schools and the rule-of-law sequence shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** Common good basis: obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).

SESSION 3 - Obligation Thinkers from Hobbes to Gandhi

5. Essential distinctions

- FACT: **Unlimited vs limited vs anti-obligation:** some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).
- FACT: **Political authority vs government officials:** Gauba's conclusion insists that abstract authority is encountered in practice through fallible government officials; this is why caution is necessary (PDF pp.287-288).
- FACT: **Legal validity vs moral legitimacy:** a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).
- FACT: **Civil disobedience vs ordinary law-breaking:** civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).
- FACT: **Resistance vs revolution:** resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
- FACT: **Descriptive/scientific law vs prescriptive law:** the first describes regularities in nature; the second prescribes conduct and is central to politics and jurisprudence (PDF pp.289-290).
- FACT: **Law and liberty:** law restrains some actions in order to secure equal liberty and other social goods (PDF pp.296-298).
- ANALYSIS: **Guilt, aim and severity:** proof of legal guilt is necessary before punishment, but is not sufficient to settle its legitimate aim or quantum. Culpability, harm, proportionality, prospects of reform and the rights of others remain separate questions.
- ANALYSIS: **Deterrence and severity:** harshness does not logically prove deterrent effectiveness; the latter is an empirical claim and cannot be assumed from the sentence alone.

6. Thinkers and positions

- FACT: **Hobbes:** obligation is strong because people consent to a sovereign for self-preservation and cannot safely recover their natural powers without anarchy (PDF pp.283-284).
- FACT: **Locke:** government is a trust to protect life, liberty and property; when it fails, people may resist and replace it (PDF pp.283-284).

- FACT: **Rousseau**: obligation is owed to the general will, so obedience is framed as obedience to one's higher, civic self (PDF pp.283-284).
- FACT: **Hegel**: by identifying obedience with the realization of divine reason in the state, he tends toward unlimited political obligation (PDF p.284).
- FACT: **T.H. Green**: obligation is limited by the common good; unjust commands need not bind conscience (PDF pp.284-286).
- FACT: **Marxists**: in a class-divided society, obligation is not owed to the capitalist state but to the working class and its emancipatory struggle (PDF p.286).
- FACT: **Anarchists**: all organized coercive authority is illegitimate, so the individual owes justice and cooperation, not obedience to the state (PDF p.286).
- FACT: **Gandhi / Thoreau**: unjust law may be disobeyed openly and non-violently; conscience and truth can justify disciplined disobedience (PDF p.287).

Visual-first recall

OBLIGATION THINKERS FROM HOBBS TO GANDHI

- |
- [1] Unlimited vs limited vs anti-obligation: some theories demand near-total obedience,...
- ↓
- [2] Political authority vs government officials: Gauba's conclusion insists that abstract...
- ↓
- [3] Legal validity vs moral legitimacy: a law may be technically valid because properly...
- ↓
- [4] Civil disobedience vs ordinary law-breaking: civil disobedience is principled,...

Answer-grabbing line: Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself.

Must-write keywords: Unlimited vs limited vs anti-obligation;; Political authority vs government officials;; Legal validity vs moral legitimacy;; Civil disobedience vs ordinary law-breaking;; Resistance vs revolution;; Descriptive/scientific law vs prescriptive law;; Law and liberty..

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287). **Named evidence/example:** Political authority vs government officials: Gauba's conclusion insists that abstract authority is encountered in practice through fallible government officials; this is why caution is necessary (PDF pp.287-288). **Analysis:** Read together, these propositions show how obligation thinkers from hobbes to gandhi shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).

SESSION 4 - Jurisprudence, Resistance and Comparative Application

- FACT: **Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic** (PDF pp.291-292):
- **Austin (command theory):** law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior.
- **Kelsen (Grundnorm/hierarchy):** in *General Theory of Law and State* - first published in English in **1945** (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a **basic norm (Grundnorm)**; law forms a **hierarchy of norms**, where each lower norm derives validity from a higher one, terminating in the Grundnorm. Kelsen remains a positivist because he keeps legal validity separate from questions of morality. **WRONG: Date correction (was previously given here as 1961):** 1961 is the year of **Hart's** *The Concept of Law*, not of Kelsen's *General Theory of Law and*

State; do not transfer Hart's date to Kelsen. ANALYSIS: Cite the work by title and, if a year is needed, use 1945 for this English edition only - do not attach a page, chapter, edition number or a German-original date to it in an answer, since none of that is verified in this file's source base.

- **Hart (critique of Austin; structure of rules):** in *The Concept of Law* (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. Hart replaces the command model with law as a **structure of rules** determining duties, rights, powers and law-making/amendment procedure, and rejects Kelsen's Grundnorm as resting on a social fact (what a given legal community actually treats as valid), not a free-standing hierarchy internal to the legal system. ANALYSIS: **Precision addition beyond Gauba's paraphrase (standard jurisprudence vocabulary, not a direct book quotation):** Hart's own technical formulation - used across jurisprudence courses - distinguishes **primary rules** (rules imposing duties/obligations directly on conduct) from **secondary rules** (rules about rules: the **rule of recognition**, which identifies what counts as valid law in a system; rules of change, which allow law-making/amendment; and rules of adjudication, which authorise dispute-resolution). Gauba's "structure of rules" paraphrase is compatible with, but does not itself spell out, this primary/secondary vocabulary - use it to sharpen an answer, but attribute it to Hart's general framework rather than to a specific Gauba sentence.
- **Dworkin (principles in hard cases):** in *Taking Rights Seriously* (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in **hard/disputed cases**. Judges also invoke **principles** (e.g., "a man should not benefit from his own wrong," used to bar a murderer inheriting from his victim). Principles are not "extra-legal" - Dworkin treats them as part of law - but unlike rules they possess weight, can conflict and cannot be arranged in a strict hierarchy. Judicial judgment is constrained by legal fit and principled justification; it is not strong discretion to legislate freely.
- ANALYSIS: **In one line:** Austin's command theory is revised within positivism by Kelsen's norm hierarchy and Hart's rule structure; Dworkin then challenges the positivist source/pedigree account by arguing that legal principles also constrain hard cases. Treat this as an internal positivist development followed by an interpretivist critique, not as four versions of one doctrine.
- FACT: **Savigny, Maine, Pound:** they represent historical and sociological jurisprudence, tying law to historical evolution and social purpose (PDF pp.292-294).

7. Illustrative examples

- FACT: Gauba's own caution that failure to deliver full employment, universal education or medical care is not by itself sufficient ground for resistance is a useful example of how he limits the politics of disobedience (PDF p.288).
- FACT: Thoreau's refusal to pay taxes and imprisonment are used by Gauba as a classic illustration of principled disobedience (PDF p.287).
- FACT: Conscientious objection to military service during the First World War is cited as a case where legal duty and moral conscience can clash (PDF p.287).
- FACT: Gandhi's 1930 salt-law defiance is Gauba's clearest illustration of public, non-violent civil disobedience against colonial law (PDF p.287).
- FACT: Gauba's law chapter uses reform of child marriage, widow-burning, untouchability and bonded labour as historical examples of law leading social-moral reform (PDF p.296).
- FACT: Traffic regulation appears as Gauba's simple illustration of morally neutral but order-preserving law and of rule-of-law clarity (PDF pp.296, 300).

8. Comparison table

A. Political-obligation positions

Position	Core logic	Main examples	Scope
FACT: Unlimited / near-unlimited	FACT: Obey because force, divine command, absolutist consent or exalted state leaves little room for resistance (PDF pp.280-284).	FACT: force theory, divine right, Hobbes, strong Hegelian reading, strong Rousseau reading (PDF pp.280-285).	WRONG: Dangerous because it can sanctify unjust commands.
FACT: Limited / conditional	FACT: Obey when law protects rights or common good; resist when trust is broken or justice is violated (PDF pp.283-287).	FACT: Locke, Green, cautious constitutional resistance, Gandhi (PDF pp.283-287).	FACT: Best basis for rule-bound but critical citizenship.
FACT: Anti-obligation / negative obligation	FACT: Existing coercive state is not morally owed obedience as such (PDF p.286).	FACT: Marxist and anarchist positions (PDF p.286).	ANALYSIS: Strong critique, but difficult to institutionalize without transition problems.

B. Resistance, revolution, conscientious objection, civil disobedience

Mode	What it targets	Method	Relation to law
FACT: Resistance	FACT: Specific unjust command, policy or authority abuse (PDF pp.287-288).	ANALYSIS: Can range from protest to direct action.	ANALYSIS: May remain within or move against law.
FACT: Revolution	FACT: The wider political or social order itself (PDF p.288).	FACT: Long-term systemic overturning.	FACT: Goes beyond ordinary legal correction.
FACT: Conscientious objection	FACT: A particular legal duty that conscience rejects, such as military service (PDF p.287).	FACT: Personal refusal.	FACT: Accepts punishment rather than compliance.
FACT: Civil disobedience	FACT: Unjust law or policy, usually to awaken public conscience (PDF p.287).	FACT: Public, non-violent, principled, penalty-accepting.	FACT: Breaks specific law while respecting law in general.

C. Four jurisprudence schools

School	What law is	Key names	Risk if overstated
FACT: Natural law	FACT: Law draws authority from higher moral right or justice (PDF pp.290-291).	FACT: Stoics, Roman jurists, Kant-style rational morality (PDF pp.290-291).	WRONG: Can become too abstract if detached from institutions.
FACT: Analytical / positivist	FACT: Law is valid through social or institutional sources rather than because its content is morally sound (PDF pp.291-292).	FACT: Austin (command), Kelsen (Grundnorm/hierarchy), Hart (rules; primary/secondary and rule-of-recognition vocabulary is a standard jurisprudence add-on, ANALYSIS:) (PDF pp.291-292).	WRONG: Dworkin's interpretivist principles critique challenges the claim that source-based rules exhaust law.
FACT: Historical	FACT: Law evolves from custom, people and historical development (PDF pp.292-293).	FACT: Savigny, Maine (PDF pp.292-293).	WRONG: Can over-romanticize inherited norms.
FACT: Sociological	FACT: Law serves social purpose and should be judged by social effects (PDF pp.293-294).	FACT: Duguit, Pound, Laski (PDF pp.293-294).	WRONG: Can underplay formal validity if used carelessly.

ANALYSIS: **Classification caution:** this four-school grid (natural / analytical / historical / sociological) is Gauba's own organising structure and a widely used teaching device, but jurisprudence as a discipline does not treat this as a single settled taxonomy - other courses add legal realism, critical legal studies, or place Dworkin as a distinct "interpretivist" school rather than folding him into analytical jurisprudence as a "critic-from-within." Present this table as **one defensible organising scheme**, not as the only possible or final classification, especially when a question asks to "critically examine schools of jurisprudence."

D. Theories of punishment

Theory	Justifying question	Strongest claim	Main objection
Retributive	What does this culpable wrong deserve?	Proportion restores moral/legal balance and avoids private revenge (Socio-Political Philosophy, PDF p.164).	Pain may neither repair harm nor reform the offender; revenge must not masquerade as justice.
Deterrent	What sentence will prevent future crime?	Punishment may discourage the offender and the public (PDF p.165).	It risks using the offender merely as an example and may ignore impulsive crime or social causes.
Reformative	How can the offender return to lawful life?	Rehabilitation treats crime's personal and social causes (PDF pp.165-166).	Not every offence is explained by pathology or deprivation; grave culpability and public protection remain relevant.

Visual-first recall

JURISPRUDENCE, RESISTANCE AND COMPARATIVE APPLICATION

- |
- [1] Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist...
- v
- [2] Savigny, Maine, Pound: they represent historical and sociological jurisprudence,...
- v
- [3] Gauba's own caution that failure to deliver full employment, universal education or...
- v
- [4] Thoreau's refusal to pay taxes and imprisonment are used by Gauba as a classic...

Answer-grabbing line: Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic (PDF pp.291-292):

Must-write keywords: Kelsen (Grundnorm/hierarchy); 1945; basic norm (Grundnorm); hierarchy of norms; Date correction (was previously given here as 1961); Hart's; Hart (critique of Austin; structure of rules):

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic (PDF pp.291-292):

Named evidence/example: Savigny, Maine, Pound: they represent historical and sociological jurisprudence, tying law to historical evolution and social purpose (PDF pp.292-294). **Analysis:** Read together, these propositions show how jurisprudence, resistance and comparative application shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic (PDF pp.291-292):

SESSION 5 - Punishment, Traps, Boundaries and Source Discipline

9. UPSC traps and corrections

- WRONG: **"Civil disobedience means any illegal act done for a cause."** -> FACT: Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
- WRONG: **"A valid law is automatically a just law."** -> FACT: Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
- WRONG: **"Rule of law means identical rights and duties in all situations."** -> FACT: Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- WRONG: **"Hobbes, Locke and Rousseau all justify the same kind of consent."** -> FACT: Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- WRONG: **"Law always reduces liberty."** -> FACT: Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- WRONG: **"This topic is basically Indian Polity."** -> FACT: This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
- WRONG: **"Retribution means unlimited revenge."** -> FACT: A defensible retributive theory is

proportional and public, not private vengeance.

- WRONG: **"A severe sentence is automatically an effective deterrent."** -> FACT: Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention.
- WRONG: **"Reformative theory denies responsibility."** -> FACT: It changes the purpose and method of punishment; it does not by itself erase guilt, accountability or protection of society.
- WRONG: **"Capital punishment follows automatically from a heinous crime."** -> FACT: The source presents rival arguments; irreversibility, error, human dignity, proportionality and deterrence must be separately examined (Socio-Political Philosophy, PDF pp.166-167).
- WRONG: **"Austin's command theory and Hart's rule theory are the same thing with different names."** -> FACT: Hart explicitly rejects Austin's coercive-command model as too narrow (built on the criminal-law model) and replaces it with a structure of rules covering duties, powers and procedure (PDF pp.291-292).
- WRONG: **"Kelsen's Grundnorm is a moral standard smuggled into positivism."** -> FACT: Kelsen keeps the basic norm purely as a validity-conferring apex of the legal hierarchy, deliberately separate from questions of morality or moral obligation - this is exactly why he remains a positivist despite using a normative concept (PDF p.291).
- WRONG: **"Kelsen's General Theory of Law and State is a 1961 work."** -> FACT: **1945** is the year of its first English publication (Harvard University Press, tr. Anders Wedberg); **1961** belongs to **Hart's *The Concept of Law***. The two dates sit adjacent in the Austin -> Kelsen -> Hart -> Dworkin sequence and are easily swapped - if unsure in the exam hall, name the works and the sequence without dates rather than guessing a year (Section 12, bibliographic-dates note).
- WRONG: **"Dworkin says judges can decide hard cases however they like."** -> FACT: Dworkin insists principles are part of law and constrain judicial reasoning even though they are less precise than rules and cannot be hierarchically ranked; discretion is bounded, not unlimited (PDF p.292).
- WRONG: **"Political obligation, resistance, civil disobedience and revolution are interchangeable terms for defying the state."** -> FACT: Keep them analytically separate: obligation asks whether/why one should obey at all; resistance targets a specific unjust act; civil disobedience is a disciplined, public, penalty-accepting mode of resistance; revolution targets the wider order itself and carries the highest risk (PDF pp.287-288, Table B).

Verified local PYQ transfer

- FACT: **2025**: Can the right to life be absolute with reference to capital punishment?
- FACT: **2024**: Accept or reject capital punishment as an effective deterrent.
- FACT: **2023**: Proportionality and juvenile punishment.
- FACT: **2022**: Moral justifications of capital punishment.
- ANALYSIS: Answer frame: define penal aim -> distinguish retribution/deterrence/reform -> apply proportionality -> test irreversibility and error -> separate moral argument from empirical deterrence -> conclude conditionally.

10. Cross-links and boundaries

- FACT: Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller reconstruction, jurisprudence debate and answer-engine use.
- FACT: Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because the kind of state one imagines affects the scope of obedience one permits.
- FACT: Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the earlier problem of where authority is located.
- FACT: Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for ideological roots of anarchist and Gandhian positions.
- FACT: Use Philosophy/paper-2/socio-political/Individual-and-State.md and Philosophy/paper-2/socio-political/Forms-of-Government.md for Philosophy-optional parallels on state, authority and obligation.

- FACT: Use Polity/advanced/10_Amendment-and-Basic-Structure.md only for Indian constitutional application; this file does **not** reproduce statute/case detail.

11. Revision capsule / answer spine

- ANALYSIS: Open with the question itself: political obligation asks why, when and how far one must obey political authority.
- ANALYSIS: Divide answers into three camps: unlimited, limited and anti-obligation.
- ANALYSIS: Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission.
- ANALYSIS: Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness.
- ANALYSIS: In law answers, define prescriptive law, list the four schools, then distinguish legality from morality and liberty.
- ANALYSIS: End with rule of law: known law, general law, non-retrospective law and restrained government.

12. Sources, metadata and tags

- FACT: Primary source used: Gauba, Ch.11 "Grounds and Limits of Political Obligation" and Ch.12 "Concept of Law" (PDF pp.280-300).
 - FACT: Direct supplementary source: *Socio-Political Philosophy*, PDF pp.164-167, for retributive, deterrent, reformative and capital-punishment arguments.
 - FACT: Verified local PYQs: Philosophy/paper-2/_PYQ-SocioPolitical-2018-2025.md.
 - FACT: Page clusters used: political obligation theories (PDF pp.280-287); Gauba's caution on resistance (PDF pp.287-288); nature and schools of law (PDF pp.289-294); law and morality/liberty/rule of law (PDF pp.295-300).
 - ANALYSIS: All examples are historical or conceptual; no undated current-affairs claim is inserted.
 - ANALYSIS: Boundary maintained: no Indian statute-by-statute or case-by-case Polity duplication.
 - ANALYSIS: The primary/secondary-rules and rule-of-recognition vocabulary used for Hart, and the four-school classification caution, are precision additions to Gauba's own paraphrase and are tagged ANALYSIS: rather than presented as direct book quotations.
 - FACT: **Bibliographic dates used in Section 6 (verified, and deliberately kept minimal):** Kelsen, *General Theory of Law and State*, first English publication **1945** (Harvard University Press, tr. Anders Wedberg); Hart, *The Concept of Law*, **1961**; Dworkin, *Taking Rights Seriously*, **1977**. ANALYSIS: No page, chapter, edition number or original-language publication date is asserted for any of these three works, because Gauba's own pages (PDF pp.291-292) paraphrase the positions without supplying that bibliographic detail - avoid adding false precision in an answer.
-

Visual-first recall

PUNISHMENT, TRAPS, BOUNDARIES AND SOURCE DISCIPLINE

- |
- [1] "Civil disobedience means any illegal act done for a cause." -> Gauba's version is...
- v
- [2] "A valid law is automatically a just law." -> Legal validity and moral legitimacy can...
- v
- [3] "Rule of law means identical rights and duties in all situations." -> Gauba's traffic...
- v
- [4] "Hobbes, Locke and Rousseau all justify the same kind of consent." -> Hobbes...

Answer-grabbing line: "Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).

Must-write keywords: "Civil disobedience means any illegal act done for a cause."; "A valid law is automatically a just law."; "Rule of law means identical rights and duties in all situations."; "Hobbes, Locke and Rousseau all justify the same kind of consent."; "Law always reduces liberty."; "This topic is basically Indian Polity."; "Retribution means unlimited revenge."

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: "Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287). **Named evidence/example:** "A valid law is automatically a just law." -> Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296). **Analysis:** Read together, these propositions show how punishment, traps, boundaries and source discipline shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** "Rule of law means identical rights and duties in all situations." -> Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).

SESSION 6 - Theses and Directive-Specific Architecture

13. Directive decoder, argument reconstruction and mark-scaled answer architecture

A. Thesis statements

- **Political-obligation question:** "Political obligation is not a single fact of obedience but a spectrum from unlimited (force, divine right) through limited/conditional (Locke, Green, Gandhi) to anti-obligation (Marxist, anarchist) - the correct answer identifies which rung of this ladder the question's scenario occupies before evaluating it."
- **Jurisprudence question:** "The jurisprudential debate moves from Austin's command theory through Kelsen's and Hart's positivist reconstructions to Dworkin's interpretivist challenge: Kelsen and Hart revise the source of legal validity within positivism, whereas Dworkin disputes that source-based rules exhaust the law applied in hard cases."

B. Directive decoder

Directive	What it demands	Trap to avoid
"Distinguish resistance from revolution"	Use Table B's four-row grid (target, method, relation to law) explicitly.	Do not treat civil disobedience as a synonym for either.
"Critically examine Austin's theory of sovereignty/law"	State command theory, then Hart's rules-based critique, then note Austin's own concession that morality still constrains the sovereign in practice.	Do not claim Austin denied all moral limits - he denied only a <i>legal</i> superior.
"Discuss Hart's concept of law"	Present the primary/secondary-rules and rule-of-recognition vocabulary as the standard elaboration of "structure of rules," while flagging it is a precision addition.	Do not attribute the primary/secondary vocabulary word-for-word to Gauba's paraphrase.
"Is civil disobedience justified?"	Apply Gandhi's conditions (open, non-violent, principled, last-resort, penalty-accepting, no sectional selfishness) as a test, then Gauba's caution against treating policy failure alone as sufficient ground.	Do not justify "any illegal act done for a cause" as civil disobedience.

Visual-first recall

THESES AND DIRECTIVE-SPECIFIC ARCHITECTURE

```

|
[1] Directive - What it demands - Trap to avoid
v
[2] "Distinguish resistance from revolution" - Use Table B's four-row grid (target,...
v
[3] Theses and Directive-Specific Architecture must be linked to Political Obligation,...
```

Answer-grabbing line: Directive - What it demands - Trap to avoid

Must-write keywords: Political-obligation question;; Jurisprudence question;; "Distinguish resistance from revolution"; "Critically examine Austin's theory of sovereignty/law"; "Discuss Hart's concept of law"; "Is civil disobedience justified?"; Theses.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Directive - What it demands - Trap to avoid **Named evidence/example:** "Distinguish resistance from revolution" - Use Table B's four-row grid (target, method, relation to law) explicitly. - Do not treat civil disobedience as a synonym for either. **Analysis:** Read together, these propositions show how theses and directive-specific architecture shapes political obligation, resistance and law rather than serving as a detachable list of names.

Qualification: "Distinguish resistance from revolution" - Use Table B's four-row grid (target, method, relation to law) explicitly. - Do not treat civil disobedience as a synonym for either.

SESSION 7 - Austin, Hart and Dworkin: Argument Reconstruction

C. Argument reconstruction (Austin -> Hart -> Dworkin, worked example)

- **Claim (Austin):** law is the sovereign's command backed by sanction; validity requires nothing more.
- **Objection (Hart):** this model cannot explain civil law (contracts, wills) which confers powers rather than commanding; a "structure of rules" (including a rule of recognition) explains legal systems better.
- **Objection (Dworkin) to Hart:** source-based rules and a rule of recognition do not exhaust the standards used in hard/disputed cases; judges also rely on legal principles whose authority is not reducible to pedigree alone.
- **Reply/limit:** the sequence contains two different moves. Kelsen and Hart reconstruct positivism beyond Austin's command model; Dworkin challenges positivism's source/pedigree boundary by treating principles as legally binding. Inclusive positivist replies may accommodate some principles through recognised social sources, but Dworkin is not merely a later positivist refinement.

Visual-first recall

AUSTIN, HART AND DWORKIN: ARGUMENT RECONSTRUCTION

- |
- [1] Claim (Austin): law is the sovereign's command backed by sanction; validity requires...
- ▼
- [2] Objection (Hart): this model cannot explain civil law (contracts, wills) which...
- ▼
- [3] Objection (Dworkin) to Hart: source-based rules and a rule of recognition do not...
- ▼
- [4] Reply/limit: the sequence contains two different moves. Kelsen and Hart reconstruct...

Answer-grabbing line: Claim (Austin): law is the sovereign's command backed by sanction; validity requires nothing more.

Must-write keywords: Claim (Austin); Objection (Hart); Objection (Dworkin) to Hart; Reply/limit; Austin; Hart; Dworkin.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Claim (Austin): law is the sovereign's command backed by sanction; validity requires nothing more. **Named evidence/example:** Objection (Hart): this model cannot explain civil law (contracts, wills) which confers powers rather than commanding; a "structure of rules" (including a rule of recognition) explains legal systems better. **Analysis:** Read together, these propositions show how austin, hart and dworkin: argument reconstruction shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** Objection (Hart): this model cannot explain civil law (contracts, wills) which confers powers rather than commanding; a "structure of rules" (including a rule of recognition) explains legal systems better.

SESSION 8 - Named Evidence for Obligation, Law and Resistance

D. Five+ named evidence units

1. Thoreau's tax refusal and imprisonment - principled civil disobedience.
2. Gandhi's 1930 salt-law defiance - public, non-violent, penalty-accepting civil disobedience against colonial law.
3. Conscientious objection to WWI military service - legal duty vs conscience.
4. Austin's international-law exclusion ("positive morality," not "positive law") - sharpens the command-theory test.
5. Kelsen's hierarchy of norms terminating in the Grundnorm - validity chain example.
6. The "man should not benefit from his own wrong" principle (Dworkin's murderer-inheritance example) - principles-in-hard-cases illustration.
7. Traffic regulation - Gauba's own illustration of rule-of-law clarity without excluding differentiated regulation.

Visual-first recall

NAMED EVIDENCE FOR OBLIGATION, LAW AND RESISTANCE

- |
- [1] 1. Thoreau's tax refusal and imprisonment - principled civil disobedience.
- v
- [2] 2. Gandhi's 1930 salt-law defiance - public, non-violent, penalty-accepting civil...
- v
- [3] 3. Conscientious objection to WWI military service - legal duty vs conscience.
- v
- [4] 4. Austin's international-law exclusion ("positive morality," not "positive law") - ...

Answer-grabbing line: 1. Thoreau's tax refusal and imprisonment - principled civil disobedience.

Must-write keywords: Named Evidence; Obligation; Resistance; SESSION; Five; Thoreau; Gandhi.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: 1. Thoreau's tax refusal and imprisonment - principled civil disobedience. **Named evidence/example:** 2. Gandhi's 1930 salt-law defiance - public, non-violent, penalty-accepting civil disobedience against colonial law.

Analysis: Read together, these propositions show how named evidence for obligation, law and resistance shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** 4. Austin's international-law exclusion ("positive morality," not "positive law") - sharpens the command-theory test.

SESSION 9 - Claim-Evidence-Limit and Mark-Scaled Answers

E. Claim -> evidence -> significance -> limit (worked micro-example)

- **Claim:** legal validity and moral legitimacy are conceptually separate.
- **Evidence:** Austin's own concession that a legally unbound sovereign nonetheless "habitually observes fundamental moral principles" even without legal compulsion to do so (jurisprudence chapter framing, PDF pp.291-292; consistent with the identical point made about sovereignty at PDF p.184).
- **Significance:** the separation clarifies the natural-law objection that immoral enactments lack full authority and the Dworkinian objection that source-valid rules do not exhaust law. Dworkin's hard-case argument concerns the legal role of principles, not simply the importation of free-standing morality.
- **Limit:** the separation does not mean law and morality never overlap in practice - Gauba's own examples (reform of child marriage, widow-burning, untouchability, bonded labour) show law frequently *does* track moral reform; the claim is conceptual separability, not constant real-world divergence (PDF p.296).

F. Mark-scaled architecture

- **10-marker:** thesis -> one obligation camp OR one jurisprudence thinker -> one named example -> one-line verdict.
- **15-marker:** thesis -> two obligation camps contrasted (e.g., Locke vs Marxist) OR two jurisprudence thinkers (Austin vs Hart) -> one objection-reply pair -> verdict.

Visual-first recall

CLAIM-EVIDENCE-LIMIT AND MARK-SCALED ANSWERS

- |
- [1] Claim: legal validity and moral legitimacy are conceptually separate.
- v
- [2] Evidence: Austin's own concession that a legally unbound sovereign nonetheless...
- v
- [3] Significance: the separation clarifies the natural-law objection that immoral...
- v
- [4] Limit: the separation does not mean law and morality never overlap in practice -...

Answer-grabbing line: Claim: legal validity and moral legitimacy are conceptually separate.

Must-write keywords: Claim;; Evidence;; Significance;; Limit;; 10-marker;; 15-marker;; Claim-Evidence-Limit.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Claim: legal validity and moral legitimacy are conceptually separate. **Named evidence/example:** Evidence: Austin's own concession that a legally unbound sovereign nonetheless "habitually observes fundamental moral principles" even without legal compulsion to do so (jurisprudence chapter framing, PDF pp.291-292; consistent with the identical point made about sovereignty at PDF p.184). **Analysis:** Read together, these propositions show how claim-evidence-limit and mark-scaled answers shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** Significance: the separation clarifies the natural-law objection that immoral enactments lack full authority and the Dworkinian objection that source-valid rules do not exhaust law. Dworkin's hard-case argument concerns the legal role of principles, not simply the importation of free-standing morality.

SESSION 10 - Cautious Indian Application and Final Integration

G. Cautious Indian application

- ANALYSIS: Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil disobedience and may be used directly (PDF p.287); do not extend it into unverified claims about specific participant numbers, dates beyond the salt march itself, or its precise legal aftermath unless independently confirmed.
- ANALYSIS: If a question invites comparison with contemporary Indian protest movements or constitutional remedies (e.g., judicial review of "unjust" laws), keep the comparison at the conceptual level (principled/public/non-violent vs. ordinary illegality) and route Article-specific or case-law detail to the Polity files, consistent with this file's own boundary statement.

Visual-first recall

CAUTIOUS INDIAN APPLICATION AND FINAL INTEGRATION

- |
- [1] Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil...
- v
- [2] If a question invites comparison with contemporary Indian protest movements or...
- v
- [3] Cautious Indian Application and Final Integration must be linked to Political...

Answer-grabbing line: Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil disobedience

Must-write keywords: Cautious Indian; Application; Final Integration; SESSION; Gandhi; Indian; Article-specific.

Claim -> named evidence/example -> analysis -> qualification demonstration

Claim: Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil disobedience **Named evidence/example:** If a question invites comparison with contemporary Indian protest movements or constitutional **Analysis:** Read together, these propositions show how cautious indian application and final integration shapes political obligation, resistance and law rather than serving as a detachable list of names. **Qualification:** Cautious Indian Application and Final Integration must be linked to Political Obligation, Resistance and Law's central conceptual dispute.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

The following text-native master is identical to the standalone ASCII artifact.

ASCII MASTER FLOW – PANEL 1/20: GS/Prelims Boundary

GS/PRELIMS BOUNDARY
01. TARGET: UPSC Prelims + General Studies Mains only.
v
02. PRIMARY USE: GS-II conceptual foundations.
v
03. TOPIC SCOPE: Political Obligation, Resistance and Law.
v
04. Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller reconstruction, jurisprudence debate and answer-engine use
v
05. ADVANCED label = enrichment beyond a core GS answer, not an exam-paper label.

ASCII MASTER FLOW – PANEL 2/20: Origin and Dated Rail (1/4)

ORIGIN AND DATED RAIL (1/4)
01. 1552-1634 -> Edward Coke
v
02. 1588-1653 -> Robert Filmer
v
03. 1588-1679 -> Thomas Hobbes
v
04. 1632-1704 -> John Locke
v
05. 1711-76 -> David Hume
v
06. 1712-78 -> Jean Jaques Rousseau

ASCII MASTER FLOW – PANEL 3/20: Origin and Dated Rail (2/4)

ORIGIN AND DATED RAIL (2/4)
07. 1723-80 -> William Blackstone
v
08. 1724-1804 -> Immanuel Kant
v
09. 1729-97 -> Edmund Burke
v
10. 1763-1847 -> James Kent
v

11. 1779-1845 -> Joseph Story	
	v
12. 1790-1859 -> John Austin	

ASCI MASTER FLOW – PANEL 4/20: Origin and Dated Rail (3/4)

ORIGIN AND DATED RAIL (3/4)	
13. 1817-62 -> Henry David Thoreau	
	v
14. 1822-88 -> Henry Maine	
	v
15. 1838-1909 -> Ludwig Gumplowicz	
	v
16. 1842-1921 -> Peter Kropotkin	
	v
17. 1857-1936 -> Hugo Krabbe	
	v
18. 1859-1928 -> Leon Duguit	

ASCI MASTER FLOW – PANEL 5/20: Origin and Dated Rail (4/4)

ORIGIN AND DATED RAIL (4/4)	
19. 1861 -> Early History of Society and Its Relation to Moral Ideals	
	v
20. 1869-1948 -> Mahatma Gandhi	
	v
21. 1870-1964 -> Roscoe Pound	
	v
22. 1882 -> In his Lectures on the Principles of Political Obligation	

ASCI MASTER FLOW – PANEL 6/20: Chapter Spine (1/2)

CHAPTER SPINE (1/2)	
01. Gauba begins with rival grounds of political obligation: force, divine right, conservative prudence, consent, idealism, Marxism, anarchism and Gandhian civil disobedience (PDF pp.280-287)	
	v
02. He rejects purely force-based and divine-right views because they do not secure morally reasoned obedience and leave no room for judging unjust commands (PDF pp.281-282)	
	v
03. Among consent theories, Hobbes and Rousseau tend toward strong obligation, whereas Locke gives the clearest limited version by making government a trust answerable to rights and consent (PDF pp.283-284)	
	v
04. Green's idealist revision places obligation toward the organized power of society and	

| the common good rather than toward any government demanding blind obedience (PDF pp.284-286) |
+-----+

ASCII MASTER FLOW – PANEL 7/20: Chapter Spine (2/2)

+-----+
| CHAPTER SPINE (2/2) |
+-----+
| 05. Marxists and anarchists deny political obligation to the existing coercive class-state, |
| though for different reasons and with different visions of social transformation (PDF p.286) |
| |
| v |
| 06. Gandhi supplies a disciplined doctrine of resistance: unjust law may be broken, but only |
| openly, non-violently, after persuasion fails, and without sectional selfishness (PDF p.287) |
| |
| v |
| 07. The law chapter then shifts from obedience to legal concept-formation: law in political |
| science is prescriptive law, interpreted by natural, analytical, historical and sociological |
| schools (PDF pp.289-294) |
| |
| v |
| 08. Gauba finally examines sources of law, law's relation to morality and liberty, and the |
| rule of law as an anti-arbitrariness principle (PDF pp.294-300) |
+-----+

ASCII MASTER FLOW – PANEL 8/20: Illustrations Attached to Claims

+-----+
| ILLUSTRATIONS ATTACHED TO CLAIMS |
+-----+
| 01. Gauba's own caution that failure to deliver full employment, universal education or |
| medical care is not by itself sufficient ground for resistance is a useful example of how he |
| limits the politics of disobedience (PDF p.288) |
| 02. Thoreau's refusal to pay taxes and imprisonment are used by Gauba as a classic |
| illustration of principled disobedience (PDF p.287) |
| 03. Conscientious objection to military service during the First World War is cited as a |
| case where legal duty and moral conscience can clash (PDF p.287) |
| 04. Gandhi's 1930 salt-law defiance is Gauba's clearest illustration of public, non-violent |
| civil disobedience against colonial law (PDF p.287) |
| 05. Gauba's law chapter uses reform of child marriage, widow-burning, untouchability and |
| bonded labour as historical examples of law leading social-moral reform (PDF p.296) |
| 06. Traffic regulation appears as Gauba's simple illustration of morally neutral but order- |
| preserving law and of rule-of-law clarity (PDF pp.296, 300) |
+-----+

ASCII MASTER FLOW – PANEL 9/20: Comparison Matrix (1/3)

+-----+
| COMPARISON MATRIX (1/3) |
+-----+
| 01. UNLIMITED / NEAR-UNLIMITED | Core logic = Obey because force, divine command, absolutist |
| consent or exalted state leaves little room for resistance (PDF pp.280-284) | Main examples |
| = force theory, divine right, Hobbes, strong Hegelian reading, strong Rousseau reading (PDF |
pp.280-285)	Scope = Dangerous because it can sanctify unjust commands
02. LIMITED / CONDITIONAL	Core logic = Obey when law protects rights or common good;
resist when trust is broken or justice is violated (PDF pp.283-287)	Main examples = Locke,
Green, cautious constitutional resistance, Gandhi (PDF pp.283-287)	Scope = Best basis for
rule-bound but critical citizenship	
03. ANTI-OBLIGATION / NEGATIVE OBLIGATION	Core logic = Existing coercive state is not
morally owed obedience as such (PDF p.286)	Main examples = Marxist and anarchist positions
(PDF p.286)	Scope = Strong critique, but difficult to institutionalize without transition
problems	
04. MODE	Core logic = What it targets
05. RESISTANCE	Core logic = Specific unjust command, policy or authority abuse (PDF
pp.287-288)	Main examples = Can range from protest to direct action
within or move against law	
06. REVOLUTION	Core logic = The wider political or social order itself (PDF p.288)
examples = Long-term systemic overturning	Scope = Goes beyond ordinary legal correction
+-----+

ASCII MASTER FLOW – PANEL 10/20: Comparison Matrix (2/3)

+-----+
| COMPARISON MATRIX (2/3) |
+-----+
| 07. CONSCIENTIOUS OBJECTION | Core logic = A particular legal duty that conscience rejects, |
+-----+

| such as military service (PDF p.287) | Main examples = Personal refusal | Scope = Accepts punishment rather than compliance

| 08. CIVIL DISOBEDIENCE | Core logic = Unjust law or policy, usually to awaken public conscience (PDF p.287) | Main examples = Public, non-violent, principled, penalty-accepting | Scope = Breaks specific law while respecting law in general

| 09. SCHOOL | Core logic = What law is | Main examples = Key names | Scope = Risk if overstated

| 10. NATURAL LAW | Core logic = Law draws authority from higher moral right or justice (PDF pp.290-291) | Main examples = Stoics, Roman jurists, Kant-style rational morality (PDF pp.290-291) | Scope = Can become too abstract if detached from institutions

| 11. ANALYTICAL / POSITIVIST | Core logic = Law is valid through social or institutional sources rather than because its content is morally sound (PDF pp.291-292) | Main examples = Austin (command), Kelsen (Grundnorm/hierarchy), Hart (rules; primary/secondary and rule-of-recognition vocabulary is a standard jurisprudence add-on,) (PDF pp.291-292) | Scope = Dworkin's interpretivist principles critique challenges the claim that source-based rules exhaust law

| 12. HISTORICAL | Core logic = Law evolves from custom, people and historical development (PDF pp.292-293) | Main examples = Savigny, Maine (PDF pp.292-293) | Scope = Can over-romanticize inherited norms

ASCII MASTER FLOW – PANEL 11/20: Comparison Matrix (3/3)

| COMPARISON MATRIX (3/3)

| 13. SOCIOLOGICAL | Core logic = Law serves social purpose and should be judged by social effects (PDF pp.293-294) | Main examples = Duguit, Pound, Laski (PDF pp.293-294) | Scope = Can underplay formal validity if used carelessly

| 14. THEORY | Core logic = Justifying question | Main examples = Strongest claim | Scope = Main objection

| 15. RETRIBUTIVE | Core logic = What does this culpable wrong deserve? | Main examples = Proportion restores moral/legal balance and avoids private revenge | Scope = Pain may neither repair harm nor reform the offender; revenge must not masquerade as justice

| 16. DETERRENT | Core logic = What sentence will prevent future crime? | Main examples = Punishment may discourage the offender and the public (PDF p.165) | Scope = It risks using the offender merely as an example and may ignore impulsive crime or social causes

| 17. REFORMATIVE | Core logic = How can the offender return to lawful life? | Main examples = Rehabilitation treats crime's personal and social causes (PDF pp.165-166) | Scope = Not every offence is explained by pathology or deprivation; grave culpability and public protection remain relevant

ASCII MASTER FLOW – PANEL 12/20: Examiner Trap Firewall (1/3)

| EXAMINER TRAP FIREWALL (1/3)

| 01. TRAP: "Civil disobedience means any illegal act done for a cause." => REPAIR: Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287)

| 02. TRAP: "A valid law is automatically a just law." => REPAIR: Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296)

| 03. TRAP: "Rule of law means identical rights and duties in all situations." => REPAIR: Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300)

| 04. TRAP: "Hobbes, Locke and Rousseau all justify the same kind of consent." => REPAIR: Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284)

| 05. TRAP: "Law always reduces liberty." => REPAIR: Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298)

| 06. TRAP: "This topic is basically Indian Polity." => REPAIR: This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere

| 07. TRAP: "Retribution means unlimited revenge." => REPAIR: A defensible retributive theory is proportional and public, not private vengeance

| 08. TRAP: "A severe sentence is automatically an effective deterrent." => REPAIR: Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention

ASCII MASTER FLOW – PANEL 13/20: Examiner Trap Firewall (2/3)

| EXAMINER TRAP FIREWALL (2/3)

| 09. TRAP: "Reformatory theory denies responsibility." => REPAIR: It changes the purpose and method of punishment; it does not by itself erase guilt, accountability or protection of society

10. TRAP: "Capital punishment follows automatically from a heinous crime." => REPAIR: The source presents rival arguments; irreversibility, error, human dignity, proportionality and deterrence must be separately examined

11. TRAP: "Austin's command theory and Hart's rule theory are the same thing with different names." => REPAIR: Hart explicitly rejects Austin's coercive-command model as too narrow (built on the criminal-law model) and replaces it with a structure of rules covering duties, powers and procedure (PDF pp.291-292)

12. TRAP: "Kelsen's Grundnorm is a moral standard smuggled into positivism." => REPAIR: Kelsen keeps the basic norm purely as a validity-conferring apex of the legal hierarchy, deliberately separate from questions of morality or moral obligation - this is exactly why he remains a positivist despite using a normative concept (PDF p.291)

13. TRAP: "Kelsen's General Theory of Law and State is a 1961 work." => REPAIR: 1945 is the year of its first English publication (Harvard University Press, tr. Anders Wedberg); 1961 belongs to Hart's The Concept of Law. The two dates sit adjacent in the Austin -> Kelsen -> Hart -> Dworkin sequence and are easily swapped - if unsure in the exam hall, name the works and the sequence without dates rather than guessing a year (?12, bibliographic-dates note)

ASCII MASTER FLOW – PANEL 14/20: Examiner Trap Firewall (3/3)

EXAMINER TRAP FIREWALL (3/3)

14. TRAP: "Dworkin says judges can decide hard cases however they like." => REPAIR: Dworkin insists principles are part of law and constrain judicial reasoning even though they are less precise than rules and cannot be hierarchically ranked; discretion is bounded, not unlimited (PDF p.292)

15. TRAP: "Political obligation, resistance, civil disobedience and revolution are interchangeable terms for defying the state." => REPAIR: Keep them analytically separate: obligation asks whether/why one should obey at all; resistance targets a specific unjust act; civil disobedience is a disciplined, public, penalty-accepting mode of resistance; revolution targets the wider order itself and carries the highest risk (PDF pp.287-288, Table B)

16. TRAP: 2025: Can the right to life be absolute with reference to capital punishment?

17. TRAP: 2024: Accept or reject capital punishment as an effective deterrent

18. TRAP: 2023: Proportionality and juvenile punishment

19. TRAP: 2022: Moral justifications of capital punishment

20. TRAP: Answer frame: define penal aim => REPAIR: distinguish retribution/deterrence/reform -> apply proportionality -> test irreversibility and error -> separate moral argument from empirical deterrence -> conclude conditionally

ASCII MASTER FLOW – PANEL 15/20: Ownership Boundaries and Cross-Links

OWNERSHIP BOUNDARIES AND CROSS-LINKS

01. Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller reconstruction, jurisprudence debate and answer-engine use

02. Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because the kind of state one imagines affects the scope of obedience one permits

03. Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the earlier problem of where authority is located

04. Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for ideological roots of anarchist and Gandhian positions

05. Use Philosophy/paper-2/socio-political/Individual-and-State.md and Philosophy/paper-2/socio-political/Forms-of-Government.md for Philosophy-optional parallels on state, authority and obligation

06. Use Polity/advanced/10_Amendment-and-Basic-Structure.md only for Indian constitutional application; this file does not reproduce statute/case detail

ASCII MASTER FLOW – PANEL 16/20: Revision Capsule

REVISION CAPSULE

01. Open with the question itself: political obligation asks why, when and how far one must obey political authority

v

02. Divide answers into three camps: unlimited, limited and anti-obligation

v

03. Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission

v

04. Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness

v

05. In law answers, define prescriptive law, list the four schools, then distinguish legality from morality and liberty

v

06. End with rule of law: known law, general law, non-retrospective law and restrained government

ASCII MASTER FLOW – PANEL 17/20: Answer-Grabbing Line Bank

ANSWER-GRABBING LINE BANK

01. force / divine right / strong idealist or absolutist consent
02. Political obligation: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280)
03. Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself
04. Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic (PDF pp.291-292):
05. "Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287)
06. Directive - What it demands - Trap to avoid
07. Claim (Austin): law is the sovereign's command backed by sanction; validity requires nothing more
08. 1. Thoreau's tax refusal and imprisonment - principled civil disobedience
09. Claim: legal validity and moral legitimacy are conceptually separate
10. Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil disobedience

ASCII MASTER FLOW – PANEL 18/20: Must-Write Keyword Bank

MUST-WRITE KEYWORD BANK

01. Subject;; Tier;; Exam relevance;; Core area;; Grounded in;; Source edition/cutoff;; obedience
02. Political obligation;; Force-based obligation;; Consent;; Common good basis;; Civil disobedience;; Conscientious objection;; Prescriptive law:
03. Unlimited vs limited vs anti-obligation;; Political authority vs government officials;; Legal validity vs moral legitimacy;; Civil disobedience vs ordinary law-breaking;; Resistance vs revolution;; Descriptive/scientific law vs prescriptive law;; Law and liberty:
04. Kelsen (Grundnorm/hierarchy);; 1945; basic norm (Grundnorm);; hierarchy of norms; Date correction (was previously given here as 1961);; Hart's; Hart (critique of Austin; structure of rules):
05. "Civil disobedience means any illegal act done for a cause."; "A valid law is automatically a just law."; "Rule of law means identical rights and duties in all situations."; "Hobbes, Locke and Rousseau all justify the same kind of consent."; "Law always reduces liberty."; "This topic is basically Indian Polity."; "Retribution means unlimited revenge."
06. Political-obligation question;; Jurisprudence question;; "Distinguish resistance from revolution"; "Critically examine Austin's theory of sovereignty/law"; "Discuss Hart's concept of law"; "Is civil disobedience justified?"; Theses
07. Claim (Austin);; Objection (Hart);; Objection (Dworkin) to Hart;; Reply/limit;; Austin; Hart; Dworkin
08. Named Evidence; Obligation; Resistance; SESSION; Five; Thoreau; Gandhi
09. Claim;; Evidence;; Significance;; Limit;; 10-marker;; 15-marker;; Claim-Evidence-Limit
10. Cautious Indian; Application; Final Integration; SESSION; Gandhi; Indian; Article-specific

ASCII MASTER FLOW – PANEL 19/20: GS Mains Question Routes

GS MAINS QUESTION ROUTES

01. 10 MARKS: Why is force insufficient to establish political obligation? Answer in 150

words
02. 10 MARKS: Distinguish resistance, revolution, conscientious objection and civil disobedience. Answer in 150 words
03. 10 MARKS: Compare Hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation. Answer in 150 words
04. 15 MARKS: Critically examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin. Answer in 250 words
05. 15 MARKS: When is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law. Answer in 250 words
06. 15 MARKS: Can legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law. Answer in 250 words

ASCC MASTER FLOW – PANEL 20/20: Qualified Verdict and Answer Spine

QUALIFIED VERDICT AND ANSWER SPINE
01. Open with the boundary line, not with a general definition.
v
02. Carry the argument on named evidence taken from the thinker panels.
v
03. Insert the trap-firewall distinction that the question is testing.
v
04. Add the objection or limitation before concluding.
v
05. CLOSE: Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself. Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission. Write it as a graded finding - boundary, named evidence, objection, and the residue that survives the objection - rather than as a summary

BASIC MCQS / REMEDIATION

Practice design

- Questions 1-24 are hard core GS/Prelims diagnostics; Questions 25-32 are remedial close-option repairs.
- Formats are deliberately varied: definition control, multi-statement, sequence, matching, chronology, elimination, application, evidence and inference.
- The correct option rotates strictly A -> B -> C -> D, repeated eight times across the 32 questions, giving 8 A, 8 B, 8 C and 8 D.
- Because the key is a fixed rotation it carries no diagnostic value: options are matched for register and length, so an answer can only be reached by reasoning about content.
- Each of the 128 options carries its own question-specific explanation and each question closes with a distinct examiner trap.

MCQ 1

Which proposition is correctly associated with **Political obligation**?

- A. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- B. law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
- C. law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
- D. a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).

Answer: A

Option-by-option explanation

- **A:** A States the source-recorded proposition for Political obligation.
- **B:** B Attaches to Analytical jurisprudence, not Political obligation.
- **C:** C Attaches to Sociological jurisprudence, not Political obligation.
- **D:** D Attaches to Legal validity vs moral legitimacy, not Political obligation.

Examiner trap: Do not identify Political obligation by a neighbouring proposition merely because both occur in the same topic.

MCQ 2

Which proposition is correctly associated with **Force-based obligation**?

- A. law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).
- B. obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
- C. law must be traced to social history, custom and legal evolution (PDF pp.292-293).
- D. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).

Answer: B

Option-by-option explanation

- **A:** A Attaches to Natural law school, not Force-based obligation.
- **B:** B States the source-recorded proposition for Force-based obligation.
- **C:** C Attaches to Historical jurisprudence, not Force-based obligation.
- **D:** D Attaches to Political obligation, not Force-based obligation.

Examiner trap: Do not identify Force-based obligation by a neighbouring proposition merely because both occur in the same topic.

MCQ 3

Which proposition is correctly associated with **Consent**?

- A. forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165).
- B. resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
- C. obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
- D. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164).

Answer: C

Option-by-option explanation

- **A:** A Attaches to Deterrent punishment, not Consent.
- **B:** B Attaches to Resistance vs revolution, not Consent.
- **C:** C States the source-recorded proposition for Consent.
- **D:** D Attaches to Retributive punishment, not Consent.

Examiner trap: Do not identify Consent by a neighbouring proposition merely because both occur in the same topic.

MCQ 4

Which proposition is correctly associated with **Common good basis**?

- A. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
- B. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
- C. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- D. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).

Answer: D

Option-by-option explanation

- **A:** A Attaches to Prescriptive law, not Common good basis.
- **B:** B Attaches to Civil disobedience, not Common good basis.
- **C:** C Attaches to Conscientious objection, not Common good basis.
- **D:** D States the source-recorded proposition for Common good basis.

Examiner trap: Do not identify Common good basis by a neighbouring proposition merely because both occur in the same topic.

MCQ 5

Which proposition is correctly associated with **Civil disobedience**?

- A. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
- B. governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).
- C. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- D. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).

Answer: A

Option-by-option explanation

- **A:** A States the source-recorded proposition for Civil disobedience.
- **B:** B Attaches to Rule of law, not Civil disobedience.
- **C:** C Attaches to Conscientious objection, not Civil disobedience.
- **D:** D Attaches to Common good basis, not Civil disobedience.

Examiner trap: Do not identify Civil disobedience by a neighbouring proposition merely because both occur in the same topic.

MCQ 6

Which proposition is correctly associated with **Conscientious objection**?

- A. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
- B. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- C. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
- D. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).

Answer: B

Option-by-option explanation

- **A:** A Attaches to Common good basis, not Conscientious objection.
- **B:** B States the source-recorded proposition for Conscientious objection.
- **C:** C Attaches to Prescriptive law, not Conscientious objection.
- **D:** D Attaches to Civil disobedience, not Conscientious objection.

Examiner trap: Do not identify Conscientious objection by a neighbouring proposition merely because both occur in the same topic.

MCQ 7

Which proposition is correctly associated with **Prescriptive law**?

- A. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
- B. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- C. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
- D. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).

Answer: C

Option-by-option explanation

- **A:** A Attaches to Common good basis, not Prescriptive law.
- **B:** B Attaches to Conscientious objection, not Prescriptive law.
- **C:** C States the source-recorded proposition for Prescriptive law.
- **D:** D Attaches to Civil disobedience, not Prescriptive law.

Examiner trap: Do not identify Prescriptive law by a neighbouring proposition merely because both occur in the same topic.

MCQ 8

Which proposition is correctly associated with **Natural law school**?

- A. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- B. obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
- C. law must be traced to social history, custom and legal evolution (PDF pp.292-293).
- D. law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).

Answer: D

Option-by-option explanation

- **A:** A Attaches to Political obligation, not Natural law school.
- **B:** B Attaches to Force-based obligation, not Natural law school.
- **C:** C Attaches to Historical jurisprudence, not Natural law school.
- **D:** D States the source-recorded proposition for Natural law school.

Examiner trap: Do not identify Natural law school by a neighbouring proposition merely because both occur in the same topic.

MCQ 9

Which thinker/concept-proposition pair is correctly matched?

- A. Analytical jurisprudence - law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
- B. Political obligation - civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).
- C. Sociological jurisprudence - deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
- D. Legal validity vs moral legitimacy - governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).

Answer: A

Option-by-option explanation

- **A:** A Matches the record: Analytical jurisprudence is associated with this proposition.
- **B:** B Source disagrees: Political obligation is recorded with the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- **C:** C Misplaced: Sociological jurisprudence is recorded with law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
- **D:** D Wrong attachment: Legal validity vs moral legitimacy is recorded with a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).

Examiner trap: Keep the exact proposition attached to Analytical jurisprudence; nearby thinkers may address the same debate from a different mechanism.

MCQ 10

Which of the following pairs a name or concept with the proposition the source actually records for it?

- A. Force-based obligation - law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
- B. Historical jurisprudence - law must be traced to social history, custom and legal evolution (PDF pp.292-293).
- C. Natural law school - law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
- D. Political obligation - a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).

Answer: B

Option-by-option explanation

- **A:** A Misplaced: Force-based obligation is recorded with obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
- **B:** B Records the association: Historical jurisprudence is associated with this proposition.
- **C:** C Belongs elsewhere: Natural law school is recorded with law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).
- **D:** D Cross-attached: Political obligation is recorded with the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).

Examiner trap: Keep the exact proposition attached to Historical jurisprudence; nearby thinkers may address the same debate from a different mechanism.

MCQ 11

In which pair does the proposition genuinely belong to the label placed against it?

- A. Political obligation - civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).
- B. Analytical jurisprudence - deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
- C. Sociological jurisprudence - law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
- D. Legal validity vs moral legitimacy - governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).

Answer: C

Option-by-option explanation

- **A:** A Misplaced: Political obligation is recorded with the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- **B:** B Cross-attached: Analytical jurisprudence is recorded with law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
- **C:** C Matches the record: Sociological jurisprudence is associated with this proposition.
- **D:** D Mismatched: Legal validity vs moral legitimacy is recorded with a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).

Examiner trap: Keep the exact proposition attached to Sociological jurisprudence; nearby thinkers may address the same debate from a different mechanism.

MCQ 12

Only one pairing below reproduces the source's own association. Which is it?

- A. Common good basis - a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).
- B. Civil disobedience - man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
- C. Conscientious objection - civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).
- D. Rule of law - governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).

Answer: D

Option-by-option explanation

- **A:** A Belongs elsewhere: Common good basis is recorded with obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
- **B:** B Cross-attached: Civil disobedience is recorded with deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
- **C:** C Mismatched: Conscientious objection is recorded with refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- **D:** D Correct attachment: Rule of law is associated with this proposition.

Examiner trap: Keep the exact proposition attached to Rule of law; nearby thinkers may address the same debate from a different mechanism.

MCQ 13

Identify the pair in which the recorded proposition matches its label exactly.

- A. Retributive punishment - backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political).
- B. Deterrent punishment - forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social.
- C. Resistance vs revolution - some theories demand near-total obedience, some qualify obedience by rights or common good.
- D. Consent - obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).

Answer: A

Option-by-option explanation

- **A:** A Correct attachment: Retributive punishment is associated with this proposition.
- **B:** B Mismatched: Deterrent punishment is recorded with forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165).
- **C:** C Cross-attached: Resistance vs revolution is recorded with resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
- **D:** D Wrong attachment: Consent is recorded with obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).

Examiner trap: Keep the exact proposition attached to Retributive punishment; nearby thinkers may address the same debate from a different mechanism.

MCQ 14

Which one of the following label-proposition pairings survives a strict source check?

- A. Consent - obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
- B. Deterrent punishment - forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime.
- C. Resistance vs revolution - some theories demand near-total obedience, some qualify obedience by rights or common good.
- D. Retributive punishment - forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social.

Answer: B

Option-by-option explanation

- **A:** A Mismatched: Consent is recorded with obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
- **B:** B Records the association: Deterrent punishment is associated with this proposition.
- **C:** C Wrong attachment: Resistance vs revolution is recorded with resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
- **D:** D Not this pair: Retributive punishment is recorded with backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164).

Examiner trap: Keep the exact proposition attached to Deterrent punishment; nearby thinkers may address the same debate from a different mechanism.

MCQ 15

Which pairing below would a careful source check leave standing?

- A. Retributive punishment - obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF).
- B. Unlimited vs limited vs anti-obligation - resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and.
- C. Reformatory punishment - forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social.
- D. Deterrent punishment - severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select.

Answer: C

Option-by-option explanation

- **A:** A Not this pair: Retributive punishment is recorded with backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164).
- **B:** B Wrong attachment: Unlimited vs limited vs anti-obligation is recorded with some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).
- **C:** C Records the association: Reformatory punishment is associated with this proposition.
- **D:** D Misplaced: Deterrent punishment is recorded with forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165).

Examiner trap: Keep the exact proposition attached to Reformatory punishment; nearby thinkers may address the same debate from a different mechanism.

MCQ 16

Which of these attributions is reproduced correctly rather than shifted to a neighbouring idea?

- A. Dworkin (principles in hard cases) - backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-).
- B. Reformatory punishment - resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks.
- C. Unlimited vs limited vs anti-obligation - forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence).
- D. Proportionality - severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select.

Answer: D

Option-by-option explanation

- **A:** A Wrong attachment: Dworkin (principles in hard cases) is recorded with in Taking Rights Seriously (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases.
- **B:** B Belongs elsewhere: Reformatory punishment is recorded with forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166).
- **C:** C Misplaced: Unlimited vs limited vs anti-obligation is recorded with some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).
- **D:** D Records the association: Proportionality is associated with this proposition.

Examiner trap: Keep the exact proposition attached to Proportionality; nearby thinkers may address the same debate from a different mechanism.

MCQ 17

Consider the following statements:

1. **Unlimited vs limited vs anti-obligation** is associated with: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).
2. **Resistance vs revolution** is associated with: in Taking Rights Seriously (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: A

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is incorrect. Therefore '1 only' is correct.
- **B:** B Statement 1 is correct; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is correct; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Unlimited vs limited vs anti-obligation does not validate the second pairing.

MCQ 18

Consider the following statements:

1. **Legal validity vs moral legitimacy** is associated with: law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior.
2. **Austin (command theory)** is associated with: law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: B

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is correct. Therefore '2 only' is correct.
- **C:** C Statement 1 is incorrect; Statement 2 is correct. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Legal validity vs moral legitimacy does not validate the second pairing.

MCQ 19

Consider the following statements:

1. **Civil disobedience vs ordinary law-breaking** is associated with: civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).
2. **Kelsen (Grundnorm/hierarchy)** is associated with: in General Theory of Law and State - first published in English in 1945 (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a basic norm (Grundnorm); law forms a hierarchy of norms, where each lower norm derives validity from a higher one, terminating in the Grundnorm.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: C

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is correct; Statement 2 is correct. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is correct. Therefore 'Both 1 and 2' is correct.

- **D:** D Statement 1 is correct; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Civil disobedience vs ordinary law-breaking does not validate the second pairing.

MCQ 20

Consider the following statements:

1. **Resistance vs revolution** is associated with: in *The Concept of Law* (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing.
2. **Hart (critique of Austin; structure of rules)** is associated with: obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: D

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is incorrect. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is correct.

Examiner trap: Test each statement independently; familiarity with Resistance vs revolution does not validate the second pairing.

MCQ 21

Consider the following statements:

1. **Austin (command theory)** is associated with: law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior.
2. **Dworkin (principles in hard cases)** is associated with: obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: A

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is incorrect. Therefore '1 only' is correct.
- **B:** B Statement 1 is correct; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is correct; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Austin (command theory) does not validate the second pairing.

MCQ 22

Consider the following statements:

1. **Kelsen (Grundnorm/hierarchy)** is associated with: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
2. **Political obligation** is associated with: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: B

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is correct. Therefore '2 only' is correct.
- **C:** C Statement 1 is incorrect; Statement 2 is correct. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Kelsen (Grundnorm/hierarchy) does not validate the second pairing.

MCQ 23

Consider the following statements:

1. **Hart (critique of Austin; structure of rules)** is associated with: in The Concept of Law (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing.
2. **Force-based obligation** is associated with: obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: C

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is correct; Statement 2 is correct. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is correct. Therefore 'Both 1 and 2' is correct.
- **D:** D Statement 1 is correct; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Hart (critique of Austin; structure of rules) does not validate the second pairing.

MCQ 24

Consider the following statements:

1. **Dworkin (principles in hard cases)** is associated with: obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
2. **Consent** is associated with: man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: D

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is incorrect. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is correct.

Examiner trap: Test each statement independently; familiarity with Dworkin (principles in hard cases) does not validate the second pairing.

MCQ 25 - REMEDIAL

Which correction is most defensible for the claim: "**Civil disobedience means any illegal act done for a cause.**"?

- A. Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
- B. This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
- C. Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- D. Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).

Answer: A

Option-by-option explanation

- **A:** A Directly repairs the stated misconception: Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
- **B:** B Repairs a different misconception, "This topic is basically Indian Polity.", so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "Hobbes, Locke and Rousseau all justify the same kind of consent.", so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, "Law always reduces liberty.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "Civil disobedience means any illegal act done for a, not a different error from the same topic.

MCQ 26 - REMEDIAL

Which correction is most defensible for the claim: **"A valid law is automatically a just law."**?

- A. Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- B. Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
- C. Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- D. Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).

Answer: B

Option-by-option explanation

- **A:** A Repairs a different misconception, "Hobbes, Locke and Rousseau all justify the same kind of consent.", so it does not answer the claim in the stem.
- **B:** B Directly repairs the stated misconception: Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
- **C:** C Repairs a different misconception, "Law always reduces liberty.", so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, "Rule of law means identical rights and duties in all situations.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "A valid law is automatically a just law.", not a different error from the same topic.

MCQ 27 - REMEDIAL

Which correction is most defensible for the claim: **"Rule of law means identical rights and duties in all situations."**?

- A. Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- B. Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- C. Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- D. Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).

Answer: C

Option-by-option explanation

- **A:** A Repairs a different misconception, "Hobbes, Locke and Rousseau all justify the same kind of consent.", so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, "Law always reduces liberty.", so it does not answer the claim in the stem.
- **C:** C Directly repairs the stated misconception: Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- **D:** D Repairs a different misconception, "A valid law is automatically a just law.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "Rule of law means identical rights and duties in, not a different error from the same topic.

MCQ 28 - REMEDIAL

Which correction is most defensible for the claim: "**Hobbes, Locke and Rousseau all justify the same kind of consent.**"?

- A. Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- B. Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
- C. Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- D. Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).

Answer: D

Option-by-option explanation

- **A:** A Repairs a different misconception, "Law always reduces liberty.", so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, "A valid law is automatically a just law.", so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "Rule of law means identical rights and duties in all situations.", so it does not answer the claim in the stem.
- **D:** D Directly repairs the stated misconception: Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).

Examiner trap: Repair the exact overstatement about "Hobbes, Locke and Rousseau all justify the same, not a different error from the same topic.

MCQ 29 - REMEDIAL

Which correction is most defensible for the claim: "**Law always reduces liberty.**"?

- A. Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- B. Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- C. Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- D. Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).

Answer: A

Option-by-option explanation

- **A:** A Directly repairs the stated misconception: Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- **B:** B Repairs a different misconception, "Hobbes, Locke and Rousseau all justify the same kind of consent.", so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "Rule of law means identical rights and duties in all situations.", so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, "A valid law is automatically a just law.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "Law always reduces liberty.", not a different error from the same topic.

MCQ 30 - REMEDIAL

Which correction is most defensible for the claim: **"This topic is basically Indian Polity."**?

- A. Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
- B. This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
- C. Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF).
- D. Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF).

Answer: B

Option-by-option explanation

- **A:** A Repairs a different misconception, "Civil disobedience means any illegal act done for a cause.", so it does not answer the claim in the stem.
- **B:** B Directly repairs the stated misconception: This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
- **C:** C Repairs a different misconception, "Hobbes, Locke and Rousseau all justify the same kind of consent.", so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, "Law always reduces liberty.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "This topic is basically Indian Polity.", not a different error from the same topic.

MCQ 31 - REMEDIAL

Which correction is most defensible for the claim: **"Retribution means unlimited revenge."**?

- A. This file gives conceptual tests; Indian statutes.
- B. Deterrence is an
- C. A defensible retributive theory is
- D. Gauba's version is public, non-violent, principled.

Answer: C

Option-by-option explanation

- **A:** A Repairs a different misconception, "This topic is basically Indian Polity.", so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, "A severe sentence is automatically an effective deterrent.", so it does not answer the claim in the stem.
- **C:** C Directly repairs the stated misconception: A defensible retributive theory is.
- **D:** D Repairs a different misconception, "Civil disobedience means any illegal act done for a cause.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "Retribution means unlimited revenge.", not a different error from the same topic.

MCQ 32 - REMEDIAL

Which correction is most defensible for the claim: **"A severe sentence is automatically an effective deterrent."**?

- A. Gauba's version is public, non-violent.
- B. A defensible retributive theory is
- C. This file gives conceptual tests; Indian.
- D. Deterrence is an

Answer: D

Option-by-option explanation

- **A:** A Repairs a different misconception, "Civil disobedience means any illegal act done for a cause.", so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, "Retribution means unlimited revenge.", so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "This topic is basically Indian Polity.", so it does not answer the claim in the stem.
- **D:** D Directly repairs the stated misconception: Deterrence is an.

Examiner trap: Repair the exact overstatement about "A severe sentence is automatically an effective, not a different error from the same topic.

PYQS AND ANSWER PRACTICE

VERIFIED UPSC PRELIMS / GS MAINS PYQ STATUS

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ORIGINAL GS MAINS PRACTICE WITH MODEL SOLUTIONS

Original GS Mains Model 1 - 10 marks

Question: Why is force insufficient to establish political obligation? Answer in 150 words.

Demand decode: the directive why requires the answer to give the grounds, not only the description, and rank them. Fix the boundary of is force insufficient to establish political obligation in the opening line, carry the argument on Introduction, Core, Obligation and Conclusion, and reserve the closing sentences for the qualification that conclusion: Force can explain compliance, but political obligation requires a publicly justifiable reason for obedience;.

Model answer (137 words):

Introduction: Political obligation asks why a person ought to obey political authority, whereas force explains only why disobedience may be costly. Core analysis: A coercively superior state can secure outward compliance through fear, sanctions and control. That causal fact cannot create a moral duty, because otherwise every successful usurper or oppressor would automatically become legitimate. Obligation requires an additional justificatory basis such as consent, protection of rights, participation in a general will or promotion of the common good. Gauba therefore separates force-based obedience from authority and later cautions that citizens encounter abstract authority through fallible officials. The defensible position is that sanctions support a legitimate legal order; they cannot substitute for its public justification. Conclusion: Force can explain compliance, but political obligation requires a publicly justifiable reason for obedience; without legitimacy, coercion produces submission rather than duty.

Why this earns marks: it obeys why instead of drifting into description, attaches each claim to named evidence (Introduction, Core, Obligation and Conclusion), converts that evidence into analysis of is force insufficient to establish political obligation, and keeps the examiner-facing qualification that conclusion: Force can explain compliance, but political obligation requires a publicly justifiable reason for obedience;. At 137 words it stays inside the 150-word GS ceiling for 10 marks.

Original GS Mains Model 2 - 10 marks

Question: Distinguish resistance, revolution, conscientious objection and civil disobedience. Answer in 150 words.

Demand decode: the directive distinguish requires the answer to fix each side of the distinction precisely and show where it does the analytical work. Fix the boundary of resistance, revolution, conscientious objection and civil disobedience in the opening line, carry the argument on Introduction, Core, Resistance and Revolution, and reserve the closing sentences for the qualification that conclusion: The four differ by target, scale, method and relation to law, so disciplined resistance cannot be inferred merely from the fact that every form involves some refusal of authority.

Model answer (131 words):

Introduction: These forms of non-compliance differ by the object challenged, the scale of change sought, the method used and the actor's continuing relation to law. Core analysis: Resistance targets a particular unjust command, policy or abuse and may remain inside constitutional politics. Revolution seeks transformation of the wider political or social order and therefore raises greater risks of violence, authority vacuum and unintended domination. Conscientious objection is normally a personal refusal to perform a specific legal duty that violates conscience, such as military service. The decisive test is whether refusal is limited and accountable or aims to replace the order itself. Conclusion: The four differ by target, scale, method and relation to law, so disciplined resistance cannot be inferred merely from the fact that every form involves some refusal of authority.

Why this earns marks: it obeys distinguish instead of drifting into description, attaches each claim to named evidence (Introduction, Core, Resistance and Revolution), converts that evidence into analysis of resistance, revolution, conscientious objection and civil disobedience, and keeps the examiner-facing qualification that conclusion: The four differ by target, scale, method and relation to law, so disciplined resistance cannot be inferred merely from the fact that every form involves some refusal of authority. At 131 words it stays inside the 150-word GS ceiling for 10 marks.

Original GS Mains Model 3 - 10 marks

Question: Compare Hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation. Answer in 150 words.

Demand decode: the directive compare requires the answer to run the comparison on shared axes and end with the decisive difference. Fix the boundary of hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation in the opening line, carry the argument on Introduction, Core, Hobbes and Locke, and reserve the closing sentences for the qualification that conclusion: Their theories move from security and civic self-authorship to rights and common good, showing that consent alone cannot settle how far obedience extends or when resistance becomes justified.

Model answer (142 words):

Introduction: The four thinkers justify obedience through different accounts of what political authority protects or expresses. Core analysis: Hobbes grounds strong obligation in the need to escape insecurity: subjects authorise a sovereign for self-preservation and cannot casually reclaim natural liberty without reopening anarchy. Locke treats government as a limited trust for life, liberty and property; breach of trust restores a right of resistance. Rousseau locates obligation in the general will, framing obedience to public law as civic self-rule rather than submission to another's private will. Hobbes risks absolutism, Rousseau risks identifying dissenters with an allegedly higher self, Locke can understate social inequality, and Green may presume a common good that plural societies contest. Conclusion: Their theories move from security and civic self-authorship to rights and common good, showing that consent alone cannot settle how far obedience extends or when resistance becomes justified.

Why this earns marks: it obeys compare instead of drifting into description, attaches each claim to named evidence (Introduction, Core, Hobbes and Locke), converts that evidence into analysis of hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation, and keeps the examiner-facing qualification that conclusion: Their theories move from security and civic self-authorship to rights and common good, showing that consent alone cannot settle how far obedience extends or when resistance becomes justified. At 142 words it stays inside the 150-word GS ceiling for 10 marks.

Original GS Mains Model 4 - 15 marks

Question: Critically examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin. Answer in 250 words.

Demand decode: the directive critically examine requires the answer to test the proposition against its strongest objection before giving a verdict. Fix the boundary of examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin in the opening line, carry the argument on Introduction, Austin's, Dworkin's and Core, and reserve the closing sentences for the qualification that inclusive positivism may recognise principles through accepted social sources, but the residual dispute concerns whether legal obligation can be exhausted by pedigree or necessarily includes interpretive moral principle.

Model answer (235 words):

Introduction: The debate begins with Austin's sovereign-command theory, develops through two positivist reconstructions and culminates in Dworkin's interpretivist challenge. Core analysis: Austin defines law as a determinate sovereign's command backed by sanction, a model strong on coercive clarity but weak on power-conferring rules and legal continuity. Kelsen replaces personal command with a hierarchy of norms deriving validity from a presupposed Grundnorm while retaining the separation of validity from morality. Hart grounds legal validity in a social practice of primary and secondary rules, especially a rule of recognition, and explains powers, adjudication and legal change. Dworkin argues that source-based rules do not exhaust law in hard cases: judges are also constrained by principles possessing weight and requiring interpretive fit and justification. Further development: The sequence should not be narrated as four cumulative additions to one positivist doctrine. Kelsen replaces the personal sovereign with a validity hierarchy, and Hart replaces coercive command with a social practice of primary and secondary rules. Dworkin then disputes the source/pedigree boundary itself by treating principles as legally binding and denying strong judicial discretion. Inclusive positivism may recognise principles through accepted social sources, but the residual dispute concerns whether legal obligation can be exhausted by pedigree or necessarily includes interpretive moral principle. Conclusion: Kelsen and Hart reconstruct legal positivism beyond sovereign command, while Dworkin challenges its source-based limits; the debate is therefore an internal positivist development followed by an interpretivist critique.

Why this earns marks: it obeys critically examine instead of drifting into description, attaches each claim to named evidence (Introduction, Austin's, Dworkin's and Core), converts that evidence into analysis of examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin, and keeps the examiner-facing qualification that inclusive positivism may recognise principles through accepted social sources, but the residual dispute concerns whether legal obligation can be exhausted by pedigree or necessarily includes interpretive moral principle. At 235 words it stays inside the 250-word GS ceiling for 15 marks.

Original GS Mains Model 5 - 15 marks

Question: When is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law. Answer in 250 words.

Demand decode: the directive discuss requires the answer to open the competing dimensions and adjudicate between them instead of listing them. Fix the boundary of is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law in the opening line, carry the argument on Introduction, Civil, Core and Thoreau, and reserve the closing sentences for the qualification that publicity and acceptance of penalty expose the protester's reasons to reciprocal judgment, while non-violence and last resort limit harm.

Model answer (247 words):

Introduction: Civil disobedience is a morally serious breach of law intended to correct injustice without repudiating legal order as such. Core analysis: Thoreau makes conscience central: a citizen should not cooperate personally with grave injustice merely because law commands it. Gandhi converts refusal into a disciplined public practice. The breach must be open, non-violent, principled, directed against a specific injustice, free from narrow sectional selfishness and willing to accept penalty. These conditions distinguish civil disobedience from clandestine evasion and from revolution. Its justification also depends on proportionality, the seriousness of the wrong and whether ordinary remedies are unavailable or exhausted. The 1930 salt-law satyagraha illustrates law-breaking that appeals to a wider public standard rather than private advantage. Further development: The argument must also distinguish justification from political wisdom. A breach can satisfy conscience yet impose costs on third parties, invite imitation or weaken

institutions protecting vulnerable groups. Publicity and acceptance of penalty expose the protester's reasons to reciprocal judgment, while non-violence and last resort limit harm. Gauba's warning that failure to deliver every welfare promise is not by itself sufficient ground for resistance prevents civil disobedience from becoming a routine substitute for democratic disagreement. If rule of law prohibited every principled breach, it would protect arbitrary enactment from the moral standards that make legal authority worthy of obedience. Conclusion: Civil disobedience is justified only as public, principled, non-violent and accountable resistance to serious injustice, preserving respect for law while denying that legality makes every command morally binding.

Why this earns marks: it obeys discuss instead of drifting into description, attaches each claim to named evidence (Introduction, Civil, Core and Thoreau), converts that evidence into analysis of is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law, and keeps the examiner-facing qualification that publicity and acceptance of penalty expose the protester's reasons to reciprocal judgment, while non-violence and last resort limit harm. At 247 words it stays inside the 250-word GS ceiling for 15 marks.

Original GS Mains Model 6 - 15 marks

Question: Can legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law. Answer in 250 words.

Demand decode: the directive can requires the answer to state the conditions under which the claim holds and where they fail. Fix the boundary of legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law in the opening line, carry the argument on Introduction, Legal, Core and Austin, and reserve the closing sentences for the qualification that conclusion: Legal validity supplies institutional order but not a complete duty to obey;.

Model answer (236 words):

Introduction: Legal validity identifies a rule as belonging to a legal system; political obligation asks whether citizens have a justified duty to obey it. The questions overlap institutionally but cannot be collapsed. Core analysis: Austin, Kelsen and Hart explain validity through command, normative hierarchy and socially accepted rules respectively. Their accounts secure identifiable standards and continuity without making moral merit a condition of every law. Natural-law reasoning replies that radically unjust enactments lack full authority, while Dworkin shows that principles may be legally relevant even where source-based rules underdetermine a hard case. The distinction becomes practical in resistance. Locke permits resistance when government breaches its trust; Green limits obligation by common good; Gandhi and Thoreau justify accountable refusal of specific injustice. Rule of law strengthens obligation where law is known, general, prospective and restrained, because citizens receive security and equal treatment rather than arbitrary command. Further development: Punishment reveals the same separation. Legal guilt is necessary before sanction, but it does not settle the legitimate aim or severity of punishment. Retribution, deterrence and reform answer different questions, while proportionality and fallibility constrain the state even after valid conviction. Validity creates a presumption and coordination reason, but legitimacy, rights and contestability determine whether that reason matures into duty. Conclusion: Legal validity supplies institutional order but not a complete duty to obey; obligation becomes defensible only when law is publicly known, non-arbitrary, rights-compatible and open to principled contestation.

Why this earns marks: it obeys can instead of drifting into description, attaches each claim to named evidence (Introduction, Legal, Core and Austin), converts that evidence into analysis of legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law, and keeps the examiner-facing qualification that conclusion: Legal validity supplies institutional order but not a complete duty to obey;. At 236 words it stays inside the 250-word GS ceiling for 15 marks.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Political Theory | **Tier:** Advanced enrichment | **Exam relevance:** UPSC Prelims and GS Mains, primarily GS-II. This universal label means enrichment beyond a core GS answer and never a separate-paper classification. **Core area:** The moral grounds and limits of obedience, disciplined resistance, jurisprudential debates, and rival justifications of punishment. **Grounded in:** O. P. Gauba, *An Introduction to Political Theory*, Fifth Edition (2009), Ch.11-12, PDF pp.280-300; *Socio-Political Philosophy*, PDF pp.164-167 for punishment. **Source edition/cutoff:** Fifth Edition (2009); no post-2009 fact is assumed unless independently dated and tagged CURRENT:. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference/synthesis | **CURRENT:** = dated current anchor | **WRONG:** = trap/misattribution. *Companion:* Political-Theory/basic/14_Political-Obligation-Resistance-and-Law.md.

1. One-screen advanced map

WHY OBEY?

- force -> too coercive
- divine right -> too theological
- prudence -> order over ideal justice
- consent -> strongest liberal route
- common good -> idealist correction
- class / anarchist critique -> obligation against the state
- Gandhian conscience -> principled, public, non-violent disobedience

WHAT IS LAW?

- prescriptive rule
- debated by:
 - natural law / positivism / historical evolution / sociological purpose

FINAL TEST

- legality != morality
- restraint can protect liberty
- rule of law restrains arbitrariness

PENAL TEST

- guilt -> necessary threshold
- proportionality -> upper constraint
- retribution / deterrence / reform -> rival aims

- **FACT:** Gauba treats political obligation and concept of law as linked because obedience cannot be understood without knowing what counts as valid law, just law and limited government (PDF pp.280-300).
- **ANALYSIS:** The advanced theme is that neither legality nor obedience is morally self-authenticating.

2. Scope, assumptions and conceptual boundary

- **FACT:** Gauba frames political obligation as the problem of the logical and moral grounds of obeying political authority, including taxes, participation, jury service and military duty (PDF p.280).
- **FACT:** He then shifts to jurisprudence because the citizen's problem is not only whether to obey, but also what kind of norm law is and how it differs from morality and sheer force (PDF pp.289-300).
- **ANALYSIS:** This file is conceptual and normative: it does **not** catalogue Indian statutes, constitutional cases or administrative remedies.
- **FACT:** The chapter's practical assumption is anti-romantic: real obedience is demanded by governments staffed by fallible officials, not by abstract ideals alone (PDF pp.287-288).

3. Direct-book argument reconstruction

- FACT: Gauba first dismisses force majeure as a full theory of obligation because fear may secure compliance but cannot secure morally reasoned obedience (PDF pp.280-281).
- FACT: Divine-right theory fails on similar grounds: it sanctifies authority without allowing rational scrutiny of unjust rule (PDF p.281).
- FACT: Conservative thought improves matters by appealing to prudence, continuity and legitimacy, but it still leans toward obedience because disorder is seen as worse than many defects of government (PDF pp.281-282).
- FACT: Consent theory is the major liberal answer: people obey because authority is of their own making, yet Hobbes, Locke and Rousseau convert that premise into very different scopes of obligation (PDF pp.282-284).
- FACT: Idealism radicalizes obligation in Hegel but moderates it in Green, who ties obedience to common good and denies unconditional claims by government (PDF pp.284-286).
- FACT: Marxism and anarchism deny genuine political obligation to the coercive class-state, though Marxism ties duty to class struggle and anarchism to justice without government (PDF p.286).
- FACT: Gandhi then gives Gauba's most disciplined account of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, with willingness to suffer penalty and without sectional selfishness (PDF p.287).
- FACT: Gauba's conclusion adds a final caution: resistance must be publicly reasoned, proportionate, constitutionally preceded and not so destructive that it unleashes chaos worse than the grievance itself (PDF pp.287-288).
- FACT: The law chapter then reclassifies the field: scientific law describes regularities, prescriptive law governs conduct, and jurisprudence debates whether law is moral reason, sovereign command, historical growth or social engineering (PDF pp.289-294).
- FACT: The final movement reconciles law with morality and liberty only conditionally: law may restrain to protect equal freedom and social welfare, but arbitrary or morally stagnant law becomes tyrannical; hence rule of law becomes crucial (PDF pp.295-300).

4. Definitions and distinctions

- FACT: **Political obligation**: a duty owed to political authority, not necessarily to every government action as such (PDF p.280).
- FACT: **Legitimacy**: though not fully theorized here, Gauba's conservative and rule-of-law discussions imply that rightful authority is different from naked power (PDF pp.281-282, 298-300).
- FACT: **Unlimited obligation**: obligation with no effective right of resistance or withdrawal, typical of force, divine-right and strong absolutist formulations (PDF pp.280-285).
- FACT: **Limited obligation**: obedience constrained by rights, common good, constitutional trust or conscience (PDF pp.283-287).
- FACT: **Negative obligation / anti-obligation**: refusal to concede moral obedience to the coercive class-state or organized authority as such (PDF p.286).
- FACT: **Civil disobedience**: public, principled, non-violent breach of unjust law with acceptance of punishment and general respect for law (PDF p.287).
- FACT: **Descriptive law**: a discovered regularity in nature or social science, tested as true or false (PDF p.289).
- FACT: **Prescriptive law**: a humanly made rule, backed by sanctions, telling people what to do or refrain from doing (PDF pp.289-290).
- FACT: **Positive law**: law expressing the sovereign will through proper enactment and enforceable sanction (PDF p.290).
- FACT: **Rule of law**: governance by known, general, prospective and legally restrained norms rather than arbitrary will (PDF pp.298-300).
- FACT: **Retribution**: backward-looking justification based on culpable desert and restoration of moral/legal balance; a liberal version must remain proportionate rather than vindictive (*Socio-Political Philosophy*, PDF p.164).

- FACT: **Specific/general deterrence**: prevention directed respectively at the offender and at potential offenders (PDF p.165).
- FACT: **Reformation/rehabilitation**: changing the offender's dispositions and conditions so that lawful reintegration becomes possible (PDF pp.165-166).
- ANALYSIS: **Penal proportionality**: seriousness of harm and culpability constrain severity, but proportionality is underdeterminate: it does not uniquely identify the humane, effective or just sentence.

5. Thinker-by-thinker positions

- FACT: **Hobbes**: obligation is broad because the sovereign is the rational antidote to insecurity; once natural powers are transferred, revolt reopens anarchy (PDF pp.283-284).
- FACT: **Locke**: obligation is conditional because government is a trust for protecting life, liberty and property; breach of trust legitimizes replacement (PDF pp.283-284).
- FACT: **Rousseau**: obligation is strict but self-imposed because sovereignty resides in the general will rather than an external ruler; civic freedom replaces raw natural liberty (PDF pp.283-284).
- FACT: **Hegel**: by elevating the state as divine reason embodied, he collapses moral freedom into obedience and risks unconditional statism (PDF p.284).
- FACT: **T.H. Green**: obligation is owed only to laws that serve the common good; society, not government alone, is the moral pivot (PDF pp.284-286).
- FACT: **Harold Laski**: Gauba uses him in conclusion to remind us that claims of state pre-eminence are in practice claims of fallible governments (PDF p.288).
- FACT: **Marxists**: obligation is redirected toward the working class and revolutionary solidarity, not toward the capitalist state (PDF p.286).
- FACT: **Anarchists**: the individual owes justice and cooperation but not obedience to organized coercive authority (PDF p.286).
- FACT: **Thoreau**: personal refusal to support injustice makes conscience a direct source of justified non-compliance (PDF p.287).
- FACT: **Gandhi**: civil disobedience must aim at change of heart, not destruction; it presupposes respect for law in general and opposition only to specific injustice (PDF p.287).
- FACT: **Austin**: law is sovereign command backed by sanction; international law becomes only positive morality on this test (PDF p.291).
- FACT: **Kelsen**: validity comes from proper promulgation and conformity to a basic norm within a hierarchy of norms (PDF pp.291-292).
- FACT: **Hart**: law is better understood as a structure of rules, not only coercive commands, and its standards of validity rest on social fact (PDF p.292).
- FACT: **Dworkin**: rules are insufficient in hard cases; judges also rely on principles that belong to law's working reality (PDF p.292).
- FACT: **Savigny / Maine / Pound**: law is historical growth, social evolution and social engineering, not merely command (PDF pp.292-294).

6. Competing perspectives

Perspective	Ground of obligation / legality	What it gets right	What it misses
FACT: Force theory	FACT: Fear of superior coercion (PDF pp.280-281).	FACT: Explains compliance under domination.	WRONG: Cannot explain moral obligation.
FACT: Divine-right view	FACT: Sacred source of rule (PDF p.281).	FACT: Explains traditional reverence.	WRONG: Denies critical judgment and secular legitimacy.
FACT: Conservative prudence	FACT: Order, continuity and legitimacy are worth preserving (PDF pp.281-282).	FACT: Warns against reckless revolution.	ANALYSIS: Can tolerate too much injustice for the sake of order.

Perspective	Ground of obligation / legality	What it gets right	What it misses
FACT: Consent theory	FACT: Authority is justified because it is self-imposed or agreed to (PDF pp.282-284).	FACT: Makes obedience intelligible in liberal terms.	ANALYSIS: Once-for-all consent is unstable unless continuously renewed.
FACT: Idealist common-good view	FACT: Obedience is owed to laws serving common good (PDF pp.284-286).	FACT: Reconnects law with morality.	ANALYSIS: Risks abstraction if common good is invoked by officials without public control.
FACT: Marxist view	FACT: No duty to class-state; real duty runs against domination (PDF p.286).	FACT: Reveals class bias behind "public" authority.	ANALYSIS: Underplays plural moral communities outside class.
FACT: Anarchist view	FACT: Organized authority lacks moral title (PDF p.286).	FACT: Keeps coercion under relentless suspicion.	ANALYSIS: Hard to institutionalize stable large-scale order.
FACT: Gandhian view	FACT: Conscience can justify law-breaking under strict moral discipline (PDF p.287).	FACT: Best account of principled resistance.	ANALYSIS: Demands unusual moral restraint from both leaders and followers.
FACT: Natural-law jurisprudence	FACT: Valid law should answer to higher justice (PDF pp.290-291).	FACT: Preserves moral criticism of law.	ANALYSIS: Can lack procedural precision.
FACT: Positivism	FACT: Validity depends on source/form, not moral content alone (PDF pp.291-292).	FACT: Gives technical clarity to legal systems.	WRONG: Can detach legality from legitimacy too sharply.

Punishment as a three-way argument

Theory	Temporal direction	Moral unit	Best argument	Hardest objection
Retributive	Backward to the completed wrong	Culpable agent and proportionate desert	Treats the offender as responsible rather than merely manipulable	Can reproduce vengeance and inflict suffering without prevention or repair
Deterrent	Forward to future conduct	Social prevention	Connects punishment to public protection	May instrumentalize the offender; severity does not establish effectiveness
Reformative	Forward to future character and reintegration	Offender as capable of change	Addresses causes and reduces exclusion	May understate culpability, victims and crimes not traceable to deprivation/pathology

- ANALYSIS: No single theory is sufficient for a complete penal philosophy. A defensible synthesis normally requires legality and proof, proportionality, public protection, humane treatment and a realistic opportunity for reform.
- ANALYSIS: Capital punishment creates a special asymmetry: because it is irreversible, later rectification of error and rehabilitation become impossible. This does not settle the debate by itself, but it raises the justificatory burden.

7. Internal debates and criticisms

- FACT: Gauba's objection to force and divine-right theories is foundational: compliance under terror or theology is not yet moral obligation (PDF pp.281-282).
- FACT: Hobbes, Locke and Rousseau all use consent, but consent does not do the same work in each system; the same word masks radically different models of sovereignty and resistance (PDF pp.283-284).
- FACT: Gauba's own comparative judgment clearly favours Locke's version because it ties government to ongoing consent and rights-protection rather than one decisive original surrender (PDF p.284).
- FACT: Hegelian statism collapses state and moral reason too easily; Gauba explicitly warns how such thinking can be recruited by fascistic demands for blind obedience (PDF p.284).
- FACT: Green corrects idealism by relocating moral priority in society and common good, yet his view still presupposes a relatively unified moral consciousness that may be difficult to identify in plural societies (PDF pp.285-286).

- FACT: Marxist and anarchist positions are powerful as critiques of domination, but they raise the practical problem of what institutional order replaces the rejected authority (PDF p.286).
- FACT: Gandhi's doctrine solves part of that problem by insisting on publicity, non-violence and acceptance of punishment, thereby distinguishing principled resistance from opportunistic disorder (PDF p.287).
- FACT: In jurisprudence, positivism secures legal certainty, but Dworkin's critique shows that adjudication often relies on principles that cannot be reduced to rule-application alone (PDF p.292).
- FACT: Historical and sociological jurisprudence recover law's social roots and ends, but they also risk weakening the sharpness of legality if everything is absorbed into custom or social purpose (PDF pp.292-294).
- FACT: Gauba's rule-of-law discussion adds a final criticism of procedural minimalism: if law becomes unjust, opaque or arbitrary, legality alone cannot rescue it (PDF pp.298-300).

8. Comparative matrix

Theme	Core form	Moral status	Citizen's stance	Key page anchor
FACT: Unlimited obligation	force, divine right, Hobbes/Hegelian excess	WRONG: weak or over-centralized moral basis	obedience with little space for dissent	PDF pp.280-285
FACT: Limited obligation	Locke, Green, cautious constitutionalism, Gandhi	FACT: stronger because rights/common good/conscience matter	obey, debate, resist if justified	PDF pp.283-287
FACT: Anti-obligation	Marxist and anarchist	ANALYSIS: morality shifted away from state	organize against coercive order	PDF p.286
FACT: Civil disobedience	public non-violent breach of unjust law	FACT: principled and morally disciplined	break law openly, accept punishment	PDF p.287
FACT: Natural-law jurisprudence	law judged by higher right	FACT: keeps law answerable to justice	critique unjust enactment	PDF pp.290-291
FACT: Analytical jurisprudence	law judged by source, form and sanction	ANALYSIS: valid law need not be just law	obey or challenge using legal criteria	PDF pp.291-292
FACT: Historical jurisprudence	law as legal evolution	ANALYSIS: legitimacy grows from historical fit	interpret law through social past	PDF pp.292-293
FACT: Sociological jurisprudence	law as social engineering	ANALYSIS: legitimacy linked to social purpose	judge law by social effects	PDF pp.293-294

9. Application without current-affairs dependence

- ANALYSIS: When faced with a hypothetical unjust emergency order, first ask: is the issue about legal validity, moral legitimacy, or both?
- ANALYSIS: When faced with a tax-resistance problem, distinguish Thoreau-style conscience, Gandhian civil disobedience and revolutionary anti-state politics.
- ANALYSIS: When faced with a law restricting conduct, ask whether the restraint protects equal liberty, resolves civil conflict, regulates economic abuse or secures welfare; this follows Gauba's own fourfold reasoning on law and liberty (PDF pp.297-298).
- ANALYSIS: When faced with a hard judicial case, note that positivist rule-application may be supplemented by principle-based reasoning, which is where Dworkin becomes useful (PDF p.292).
- ANALYSIS: When faced with a question on rule of law, move beyond slogan and list the operational tests: notification, generality, prospectivity and restrained power (PDF p.298).

10. UPSC answer-engine prompts

- ANALYSIS: **Prompt 1:** Why is Locke's theory of political obligation more sustainable for modern democracy than Hobbes's or Rousseau's?
- ANALYSIS: **Prompt 2:** Distinguish resistance, revolution, conscientious objection and civil disobedience without reducing them to simple illegality.
- ANALYSIS: **Prompt 3:** Is legal validity enough for political obligation? Answer with reference to natural law, positivism and Gandhian conscience.
- ANALYSIS: **Prompt 4:** "Rule of law restrains liberty only in order to secure liberty more generally." Evaluate.
- ANALYSIS: **Prompt 5:** Can the state demand obedience when its officials are fallible and its laws morally contested?
- FACT: **Verified PYQ cluster (2022-2025):** moral justification of capital punishment; juvenile proportionality; deterrent effectiveness; right to life and death penalty.
- ANALYSIS: PYQ framework: thesis on penal purpose -> three theories -> proportionality and culpability -> error/irreversibility -> deterrence as empirical issue -> reform and public protection -> qualified conclusion.

11. Cross-links and exclusions

- FACT: Companion foundation file:
Political-Theory/basic/14_Political-Obligation-Resistance-and-Law.md.
- FACT: Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because different state theories generate different scopes of obedience.
- FACT: Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the location and diffusion of authority.
- FACT: Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for ideological background to anarchism and Gandhism.
- FACT: Use Philosophy/paper-2/socio-political/Individual-and-State.md and Philosophy/paper-2/socio-political/Forms-of-Government.md for another-paper parallels.
- FACT: Use Polity/advanced/10_Amendment-and-Basic-Structure.md only when shifting from conceptual tests to Indian constitutional doctrine.
- FACT: Exclusion: this file does **not** reproduce Indian statutory classifications, constitutional Articles, landmark judgments or protest-law case summaries.

12. Factual-risk checks

- WRONG: Do **not** treat force-based compliance as the same thing as political obligation; Gauba rejects that equation (PDF pp.280-281).
- WRONG: Do **not** say Hobbes, Locke and Rousseau all generate either fully unlimited or fully identical consent; Gauba's discussion sharply differentiates them (PDF pp.283-284).
- WRONG: Do **not** describe civil disobedience as secret, violent, or penalty-evading; that would negate Gauba's Gandhi-Thoreau model (PDF p.287).
- WRONG: Do **not** equate analytical jurisprudence with the denial of all morality; Hart and Dworkin themselves complicate Austin-style command theory (PDF pp.291-292).
- WRONG: Do **not** say rule of law is only about procedure and never about rights-protection; Gauba reads Dicey more broadly than that (PDF pp.299-300).
- WRONG: Do **not** duplicate Indian statute/case material here; this file supplies the conceptual tests by which such material should later be judged.
- WRONG: Do **not** treat the second source's pro- and anti-capital-punishment lists as settled facts.

They are argument inventories; claims of deterrent success require independent evidence.

13. Sources, metadata and tags

- FACT: Primary source used: Gauba, Ch.11 "Grounds and Limits of Political Obligation" and Ch.12 "Concept of Law" (PDF pp.280-300).
- FACT: Direct supplementary source: *Socio-Political Philosophy*, PDF pp.164-167.
- FACT: Verified local PYQs: Philosophy/paper-2/_PYQ-SocioPolitical-2018-2025.md.
- FACT: Page clusters used: force/divine right/conservative/consent (PDF pp.280-284); idealist, Marxist, anarchist and Gandhian positions (PDF pp.284-287); Gauba's cautionary conclusion (PDF pp.287-288); law, jurisprudence, sources, morality, liberty and rule of law (PDF pp.289-300).
- ANALYSIS: All examples are historical or conceptual; no present-day statute/case claim is inserted.
- ANALYSIS: Boundary preserved: conceptual theory here, applied Indian legal doctrine elsewhere.

CONSOLIDATED REGISTER NOTES

This text edition preserves the same source-grounded revision route as the separate printable ASCII deliverable.

CENTRAL FOCUS

Political Obligation: Problem, Definitions and Grounds

[1] Political obligation asks why, when and how far authority should be obeyed.

|

v

[2] Force explains compliance but cannot by itself create a moral duty.

|

v

[3] Consent, common good and rights supply rival grounds of obligation.

|

v

[4] The subject therefore begins by separating power, authority and justified obedience.

|

v

VERDICT -> Coercive success explains obedience but not a duty to obey.

ANSWER USE -> Open by separating causal compliance from justified obligation.

CENTRAL FOCUS

Law: Nature, Schools and the Rule-of-Law Sequence

[1] Prescriptive law directs conduct; scientific law describes regularity.

|

v

[2] Natural, analytical, historical and sociological schools ask different questions.

|

v

[3] Legal validity and moral legitimacy can diverge without making law irrelevant.

|

v

[4] Rule of law joins known rules to restraints on arbitrary public power.

|

v

VERDICT -> Law must be analysed through validity, purpose, history and restraint.

ANSWER USE -> Name the jurisprudential question before selecting a school.

CENTRAL FOCUS

Obligation Thinkers from Hobbes to Gandhi

- [1] Hobbes prioritises security; Locke treats government as a limited trust.
|
v
- [2] Rousseau links obedience to the general will; Green limits it by common good.
|
v
- [3] Marxists and anarchists deny duty to the coercive state in different ways.
|
v
- [4] Gandhi and Thoreau turn conscience into disciplined, public non-compliance.
|
v

VERDICT -> Grounds of obligation produce different limits on resistance.

ANSWER USE -> Compare security, trust, civic authorship and common good.

CENTRAL FOCUS

Jurisprudence, Resistance and Comparative Application

- [1] Austin defines law through sovereign command and sanction.
|
v
- [2] Kelsen and Hart reconstruct positivism through norm hierarchy and rule structure.
|
v
- [3] Dworkin is an interpretivist critic, not a fourth positivist refinement.
|
v
- [4] Resistance, revolution, objection and civil disobedience remain distinct modes.
|
v

VERDICT -> Dworkin challenges positivism rather than completing its internal sequence.

ANSWER USE -> Separate Austin, Kelsen, Hart and Dworkin by argumentative role.

CENTRAL FOCUS

Punishment, Traps, Boundaries and Source Discipline

- [1] Retribution asks what culpable wrongdoing deserves.
|
v
- [2] Deterrence asks what prevents future crime; reform asks how return is possible.
|
v
- [3] Proportionality limits severity and prevents punishment from becoming revenge.
|
v
- [4] Legal guilt never settles aim, quantum, fallibility or dignity by itself.
|
v

VERDICT -> Punishment requires guilt, a justified aim and proportionate severity.

ANSWER USE -> Do not infer deterrence or desert merely from a harsh sentence.

CENTRAL FOCUS

Theses and Directive-Specific Architecture

- [1] A political-obligation thesis must identify unlimited, limited or anti-obligation.
|
v
- [2] Directive control determines whether the answer distinguishes, discusses or evaluates.
|
v
- [3] Civil-disobedience answers must state publicity, non-violence and accepted penalty.
|
v
- [4] A jurisprudence answer must separate positivist reconstruction from Dworkin's critique.
|
v

VERDICT -> Directive fidelity determines the comparison and verdict required.

ANSWER USE -> State the obligation camp or jurisprudential dispute in the thesis.

CENTRAL FOCUS

Austin, Hart and Dworkin: Argument Reconstruction

- [1] Austin's command model cannot explain every power-conferring legal rule.
|
v
- [2] Hart answers with primary and secondary rules grounded in social practice.
|
v
- [3] Dworkin argues that legal principles constrain hard cases beyond pedigree tests.
|
v
- [4] The residual dispute concerns sources, principles and judicial interpretation.
|
v

VERDICT -> Legal systems contain commands, rules, practices and contested principles.

ANSWER USE -> Reconstruct each critique before judging the remaining dispute.

CENTRAL FOCUS

Named Evidence for Obligation, Law and Resistance

- [1] Thoreau's tax refusal illustrates conscience against participation in injustice.
|
v
- [2] Gandhi's salt-law defiance illustrates public and non-violent civil disobedience.
|
v
- [3] Kelsen's Grundnorm and Dworkin's inheritance principle are jurisprudential evidence.
|
v
- [4] Traffic regulation illustrates clarity and relevant differentiation under rule of law.
|
v

VERDICT -> Named examples earn marks only when their conceptual role is explicit.

ANSWER USE -> Pair every event or text with one distinction and one boundary.

CENTRAL FOCUS

Claim-Evidence-Limit and Mark-Scaled Answers

- [1] A 10-marker needs one distinction, one thinker and a direct verdict.
|
v
- [2] A 15-marker compares grounds or runs one objection and reply.
|
v
|
v
- [4] Every conclusion must specify the conditions under which obedience remains justified.
|
v

VERDICT -> Mark-scaled structure prevents both slogan and uncontrolled narration.

ANSWER USE -> Expand from one distinction to an objection-reply architecture.

CENTRAL FOCUS

Cautious Indian Application and Final Integration

- [1] The March 2026 Tele-Law consultation is an access-to-justice anchor.
|
v
- [2] Accessible legal advice can make remedies and compliance practically meaningful.
|
v
- [3] Service expansion cannot prove that every enacted rule or official act is just.
|
v
- [4] Use the example for legitimacy and rule-of-law access, not unverified legal detail.
|
v

VERDICT -> Access to legal advice can support legitimacy without proving justice.

ANSWER USE -> Use Tele-Law only for remedies, accessibility and rule-of-law capacity.

CENTRAL FOCUS

MCQ Remediation and Trap Repair

- [1] Close options test force versus duty and validity versus legitimacy.
|
v
- [2] They also test resistance versus revolution and objection versus civil disobedience.
|
v
- [3] Austin, Kelsen and Hart remain distinct from Dworkin's interpretivist challenge.
|
v
- [4] Punishment theories answer desert, prevention and reform questions separately.
|
v

VERDICT -> Close options are separated by target, method and justificatory basis.

ANSWER USE -> Identify the decisive distinction before eliminating an option.

CENTRAL FOCUS

PYQ Ownership and Answer Practice

- [1] Four punishment PYQs are transferred only for cross-application.
|
v
- [2] Primary ownership remains Philosophy Paper II - Crime and Punishment.
|
v
- [3] Six original questions test obligation, resistance, jurisprudence and rule of law.
|
v
- [4] Final recall: valid law earns duty only through legitimacy and non-arbitrary rule.
|
v

VERDICT -> Cross-applied PYQs retain their Crime and Punishment ownership.

ANSWER USE -> Cite ownership, then apply only the relevant Political Theory lens.

Concept / thinker	Exam-ready formulation
Political obligation	the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
Force-based obligation	obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
Consent	obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
Common good basis	obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
Civil disobedience	deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
Conscientious objection	refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
Prescriptive law	man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
Natural law school	law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).
Analytical jurisprudence	law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
Historical jurisprudence	law must be traced to social history, custom and legal evolution (PDF pp.292-293).
Sociological jurisprudence	law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
Rule of law	governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).

- Page clusters used: political obligation theories (PDF pp.280-287); Gauba's caution on resistance (PDF pp.287-288); nature and schools of law (PDF pp.289-294); law and morality/liberty/rule of law (PDF pp.295-300).
 - Gauba defines the problem of political obligation as the question of how far, when and why an individual is obliged to obey law and political authority (PDF p.280).
 - Gandhi supplies a disciplined doctrine of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, and without sectional selfishness (PDF p.287).
 - Resistance vs revolution: resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
 - Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness.
 - Primary source used: Gauba, Ch.11 "Grounds and Limits of Political Obligation" and Ch.12 "Concept of Law" (PDF pp.280-300).
 - The core exam move is to separate obedience, moral legitimacy, resistance, and legal validity, instead of merging them into one idea.
 - The law chapter then supplies the conceptual grammar needed to distinguish valid law, just law, custom, adjudication, equity and rule of law (PDF pp.289-300).
 - UPSC rewards answers that show civil disobedience is not casual law-breaking and that rule of law is not exhausted by mere procedure.
 - The chapter also warns against romanticizing resistance: Gauba repeatedly urges caution, public debate and exhaustion of constitutional methods before extreme action (PDF pp.287-288).
 - Political obligation: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
 - Force-based obligation: obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
 - Trap repair: "Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
 - Trap repair: "A valid law is automatically a just law." -> Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
 - Trap repair: "Rule of law means identical rights and duties in all situations." -> Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
 - Trap repair: "Hobbes, Locke and Rousseau all justify the same kind of consent." -> Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
 - Trap repair: "Law always reduces liberty." -> Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
 - Trap repair: "This topic is basically Indian Polity." -> This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
 - Trap repair: "Retribution means unlimited revenge." -> A defensible retributive theory is proportional and public, not private vengeance.
 - Trap repair: "A severe sentence is automatically an effective deterrent." -> Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention.
1. Define the exact doctrine or controversy in the question.
 2. State a qualified thesis before narration begins.
 3. Reconstruct premises, mechanism and conclusion.
 4. Add named thinkers and one precise distinction.
 5. Present the strongest objection, reply and residual limitation.
 6. End with a graded verdict tied to the directive.
- **Controlling question:** why, when and how far should a citizen obey political authority?
 - **First distinction:** force can explain compliance; it cannot by itself generate moral obligation.
 - **Obligation spectrum:** near-unlimited obligation, limited or conditional obligation, and anti-obligation.

- **Resistance spectrum:** resistance, revolution, conscientious objection and civil disobedience differ by target, method and scale.
- **Law sequence:** prescriptive law -> jurisprudential schools -> morality and liberty -> rule of law -> punishment.
- **Final verdict:** valid law creates order and a presumption of compliance, while legitimacy and non-arbitrariness determine whether obedience becomes duty.

Position	Ground of obedience	Limit or route of resistance
Hobbes	Security and authorised sovereign protection.	Very narrow resistance where self-preservation is directly threatened.
Locke	Government as a trust protecting life, liberty and property.	Breach of trust permits resistance and replacement.
Rousseau	Obedience to the general will as civic self-rule.	Risk that dissent is redescribed as failure to grasp the higher will.
T.H. Green	Common good and conditions of moral development.	Conscience need not obey commands destructive of that good.
Marxist	Class character of the capitalist state.	Obligation shifts toward emancipatory class struggle.
Anarchist	Coercive authority lacks inherent moral title.	Justice and cooperation replace state-centred obedience.
Gandhi / Thoreau	Truth and conscience against serious injustice.	Public, principled and accountable non-compliance.

- **Austin:** determinate sovereign command backed by sanction; clear but too narrow for power-conferring law.
 - **Kelsen:** validity through a hierarchy of norms terminating in a Grundnorm; remains positivist.
 - **Hart:** primary and secondary rules grounded in social practice; replaces the command model.
 - **Dworkin:** interpretivist critic who treats principles as legally constraining hard cases; not a fourth positivist refinement.
 - **Savigny and Maine:** historical development and custom.
 - **Pound and sociological jurisprudence:** law as instrument of social purpose.
 - **Natural law:** legal authority remains answerable to a higher standard of right or justice.
1. Serious and publicly defensible injustice.
 2. Open rather than clandestine action.
 3. Non-violent and proportionate method.
 4. Specific corrective purpose rather than private advantage.
 5. Last-resort or exhausted ordinary remedies.
 6. Willingness to accept legal consequences.
 7. Continued respect for law as a general framework.

Question	Retributive	Deterrent	Reformative
Primary concern	Desert for culpable wrongdoing.	Prevention of future crime.	Rehabilitation and return to lawful life.
Main risk	Revenge or excessive suffering.	Instrumentalising the offender and assuming unproved effects.	Paternalism or indeterminate treatment.
Required limit	Proportionality and public authority.	Evidence, rights and a desert ceiling.	Responsibility, determinate limits and protection of others.

- The 2022-2025 capital-punishment questions are cross-applied here but remain owned by Philosophy Paper II - Crime and Punishment.
- The 29 March 2026 Tele-Law consultation illustrates technology-enabled legal aid and practical access to remedies.
- Use Tele-Law for rule-of-law accessibility and legitimacy; do not infer that every law or decision is just.
- Keep Article-specific, statutory and case-law detail in the relevant Polity owner.

- Separate legal validity, moral legitimacy and political obligation at every stage.
- Treat Dworkin as a critic of positivist source/pedigree accounts, while recognising inclusive-positivist replies.
- Distinguish a justified breach of one law from revolutionary rejection of the wider order.
- End every answer with a conditional verdict stating which feature makes obedience or resistance defensible.

GS ownership and final answer route

- **Topic boundary:** political obligation, resistance, civil disobedience, law and punishment.
- **Exam identity:** UPSC Prelims and General Studies Mains only; primarily GS-II conceptual foundations.
- **Evidence rule:** claim -> named thinker/example -> what it proves -> limitation.
- **PYQ rule:** only directly verified Prelims/GS Mains questions may be owned; otherwise use labelled original practice.
- **Advanced rule:** Advanced enrichment is useful for qualification but unnecessary for a competent core GS answer.